

The Calico Cat

Charles Miner Thompson

An abstract geometric design featuring a teal background with various purple shapes. There are two vertical bars on the left, a horizontal bar in the upper right, a horizontal bar in the middle, a large triangle on the right, a curved bar at the bottom, and a horizontal bar at the bottom right. The text 'Project Gutenberg' is written in white at the bottom right.

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Charles Miner Thompson

An abstract geometric design on a green background. It features several purple shapes: two vertical bars on the left, a horizontal bar on the right, a horizontal bar in the center, a large triangle on the right, a curved bar at the bottom, and a horizontal bar at the bottom right. A thick purple L-shaped bar is on the left side.

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CAT ***

THE CALICO CAT

BY

CHARLES MINER THOMPSON

WITH ILLUSTRATIONS BY

F. R. GRUGER



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SECOND IMPRESSION

TO MY WIFE

NOTE

I have to make these acknowledgments: to Mr. Ira Rich Kent for many a helpful suggestion in the framing of the story; to the publishers of "The Youth's Companion," in which the tale first appeared, for permitting the use of Mr. Gruger's admirable illustrations, and to Mr. Francis W. Hight for the very pleasant cat which he has drawn for the cover.

THE AUTHOR



THE CALICO CAT

I

MR. PEASLEE looked more complacent than ever. It was Saturday noon, and Solomon had just returned from his usual morning sojourn "up-street." He had taken off his coat, and was washing his face at the sink, while his wife was "dishing up" the midday meal. There was salt codfish, soaked fresh, and stewed in milk—"picked up," as the phrase goes; there were baked potatoes and a thin, pale-looking pie. Mrs. Peaslee did not believe in pampering the flesh, and she did believe in saving every possible cent.

"Well," said Mr. Peaslee, as they sat down to this feast, "I guess I've got news for ye."

His wife gazed at him with interest.

"Are ye drawed?" she asked.

"Got the notice from Whitcomb right in my pocket. Grand juror. September term. 'T ain't more'n a week off."

The *staccato* utterance was caused by the big mouthfuls of codfish and potato which, between phrases, Mr. Peaslee conveyed to his mouth. It was plain to see that he was greatly pleased with his new dignity.

"What do they give ye for it?" asked his wife. Solomon should accept no office which did not bring profit.

"Two dollars a day and mileage," said Mr. Peaslee, with the emphasis of one who knows he will make a sensation.

"Mileage? What's that?"

"Travelin' expenses. State allows ye so much a mile. I get eight cents for goin' to the courthouse."

"Ye get eight cents every day?" asked his wife, her eyes snapping. She was vague about the duties of a grand juror; maybe he had to earn his two dollars; but she had exact ideas about the trouble of walking "up-street." To get eight cents for that was being paid for doing nothing at all, and she was much astonished at the idea.

"Likely now, ain't it?" said Mr. Peaslee, with masculine scorn. "State don't waste money that way! Mileage's to get ye there an' take ye home again when term's over. You're s'posed to stay round 'tween whiles."

"Humph!" said his wife, disappointed. "They give ye two dollars a day"—she hazarded the shot—"just for settin' round and talkin', don't they? Walkin's considerable more of an effort for most folks."

"'Settin' round an' talkin'!'" exclaimed Mr. Peaslee, so indignantly that he stopped eating for a moment, knife and fork upright in his rigid, scandalized hands, while he gazed at his thin, energetic, shrewish little wife. "'Settin' round and talkin'!' It's mighty important work, now I tell ye. I guess there wouldn't be much law and order if it wa'n't for the grand jury. They don't take none but men o' jedgment. Takes gumption, I tell ye. Ye have to pay money to get that kind."

"Well," said his wife, with the air of one who concedes an unimportant point, "anyhow, it's good pay for a man whose time ain't worth anythin'."

"Ain't worth anythin'!" exclaimed Mr. Peaslee, in hurt tones. "Now, Sarepty, ye know better'n that. I don't know how they'll get along without me up to the bank. They've got a pretty good idee o' my jedgment 'bout mortgages. They don't pass any without my say so."

Mrs. Peaslee sniffed. "I've seen ye in the bank window, settin' round with Jim Bartlett and Si Spooner and the rest of 'em. Readin' the paper—that's all *I* ever see ye doin'. Must be wearin' on ye."

"Guess ye never heard what was said, did ye? Can't hear 'em thinkin', I guess. They're mighty shreüd up to the bank, mighty shreüd."

They had finished their codfish and potato, and Mrs. Peaslee, without giving much attention to her husband's testimony to the business acumen of

his banking friends and incidentally of himself, pulled the pale, thin pie toward her and cut it.

"Pass up your plate," said she.

When his plate was again in place before him, Mr. Peaslee inserted the edge of his knife under the upper crust and raised it so that he could get a better view of its contents; he had his suspicions of that pie. What he saw confirmed them; between the crusts was a thin, soft layer of some brown stuff, interspersed with spots of red.

"Them's the currants we had for supper the night before last, and that's the dried-apple sauce we had for supper last night," he announced accurately. "An' ye know how I like a proper pie."

"I ain't goin' to waste good victuals," said his wife, with decision.

There was silence for a moment; Solomon did not dare make any further protest.

"I suppose," his wife said, picking up again the thread of her thoughts, "ye'll have to wear your go-to-meetin' suit all the time to the grand jury. I expect they'll be all wore out at the end. That'll take off something. You be careful, now. Settin' round's awful wearin' on pants. You get a chair with a cushion. And don't ye go treatin' cigars. And don't ye go to the hotel for your victuals. I ain't goin' to have ye spendin' your money when ye can just as well come home. Where ye goin' now?"

Mr. Peaslee was putting on his coat. "Well," he said, "I kind o' thought I'd step over to Ed'ards's. I thought mebbe he'd be interested."

"Goin' to brag, are ye?" was his wife's remorseless comment. "Much good it'll do ye, talkin' to that hatchet-face. He ain't so pious as he looks, if all stories are true."

But Mr. Peaslee was already outside the door. She raised her voice shrilly. "You be back, now; them chickens has got to be fed!"

Mr. Peaslee sought a more sympathetic audience. Being drawn for the grand jury had greatly flattered his vanity, for it encouraged a secret ambition which he had long held to get into public life. Service on the grand

jury might lead to his becoming selectman, perhaps justice of the peace, perhaps town representative from Ellmington—who knew what else? He looked down a pleasant vista of increasing office, at the end of which stood the state capitol. He could be senator, perhaps! And he began planning his behavior as juror, the dignified bearing, the well-matured utterances, the shrewd cross-questioning. At the end of his service his neighbors would know him for a man of solid judgment, a "safe" man to be intrusted with weighty affairs.

Mr. Peaslee was fifty-three years old. He had a comfortable figure, a clean-shaven, round face, and blue eyes much exaggerated for the spectator by the strong lenses of a pair of great spectacles. These, with his gray hair, gave him a benevolence of aspect which somewhat misrepresented him. As a matter of fact, although good-humored and not without a still surviving capacity for generous impulse, he was only less "near" than his wife. Childishly vain, he bore himself with an air of self-satisfaction not without its charm for humorous neighbors. They said that they guessed he thought himself "some punkins."

"Some punkins" most people admitted him to be, although how much of his money and how much of his shrewdness was really his wife's was matter of debate among those who knew him best. At any rate, the Peaslees had made money. A few years before, they had sold their fat farm "down-river" advantageously, and had bought the dignified white house in Ellmington in which they have just been seen eating a dinner which looks as if they were "house poor." That they were not; they had thirty thousand dollars in the local bank, partly invested in its stock. In Ellmington Mrs. Peaslee was less lonely, and through Mr. Peaslee was an unsuspected director in the bank, and a shrewd user of the chances for profitable investment which her husband's association with the "bank crowd" opened to her.

As for Mr. Peaslee, he did not know that he himself was not the business head of the house; and his garden, his chickens, and his pleasant loafing in the bank window kept him contentedly occupied. For, in spite of her shrewish tongue, Mrs. Peaslee had tact enough to let her husband have the credit for her business acumen. "I ain't goin' to let on," she said to herself, "that he ain't just as good as the rest of 'em." She had her pride.

As Mr. Peaslee stepped along the straight walk which divided his neat lawn, and opened the neat gate in his neat white fence, he met Sam Barton, the broad-shouldered, good-humored giant who was constable of Ellmington. Sam gave him a smiling "How are ye, squire?" as he passed.

"Guess he's heard," said Mr. Peaslee to himself, much pleased. Yet, as a matter of fact, the greeting was not different from that which Sam had given him daily for the past three years.

Once on the sidewalk, Mr. Peaslee turned to the right toward the house of his neighbor, Mr. Edwards. Edwards was a younger man than Peaslee, perhaps forty-seven. His business was speculating in lumber and cattle, and in the interest of this he was constantly passing and re passing the Canadian border, which was not far from Ellmington. In the intervals between his trips he was much at home. He was a stern, silent, secretive man, and simply because he was so close-mouthed there was much guessing and gossip, not wholly kind, about his affairs.

Mr. Peaslee found the front door of the Edwards house standing open in the trustful village fashion, and, with neighborly freedom, walked in without ringing. He turned first into the sitting-room, where he found no one, and then into a rear room opening from it. This obviously was a boy's "den." On the table in the centre were a checkerboard, some loose string, a handful of spruce gum, some scattered marbles, a broken jack-knife, a cap, a shot-pouch, an old bird's nest, a powder-flask, a dog-eared copy of "Cæsar's Commentaries," open, and a Latin dictionary, also open. In a corner stood a fishing-rod in its cotton case; along the wall were ranged bait-boxes, a fishing-basket, a pair of rubber boots, and a huge wasp's nest. Leaning against the sill of the open window was a double-barreled shotgun, and on the sill itself were some black, greasy rags and a small bottle of oil.

Various truths might be inferred from the disarray. One was that Mr. Edwards was generous to his son Jim, and another was that there was no Mrs. Edwards. Further, it might be easily enough guessed that Jim had been lured from the study of Latin, in which pretty Miss Ware, who was his teacher at the "Union" school, was trying to interest him, by the attractive idea of oiling his gun-barrels, and that something still more attractive—

perhaps a boy with crossed fingers, for it was not too late for swimming—had lured him from that. At any rate, Jim was not there.

Mr. Peaslee, still bent on finding Mr. Edwards, moved toward the open window. But he could see no signs of life anywhere. None of the household was, however, far away. Jim was in the loft of the barn, where he was carefully examining a barrel of early apples with a view to filling his pockets with the best; the housekeeper had merely stepped across the street to borrow some yeast, and Mr. Edwards, who had a headache, was lying down in the chamber immediately above Jim's den.

Mr. Peaslee stood and gazed. He eyed in turn the kitchen ell, the shed, and the barn, and then gazed out over the "posy" garden, where still bloomed a few late flowers, of which he recognized only the "chiny" asters. He looked toward what he himself would have called the "sarce" garden, with its cabbages, turnips, rustling corn-stalks, and drying tomato-vines. Seeing no one there, he sent his gaze to the distant rows of apple trees, bright with ripening fruit. Disappointed, he was about to turn away, but he could not resist taking a complacent, sweeping view of his own adjoining possessions.

There, on the right, ran the long line of his own dwelling, continued by the five-foot board fence separating his garden from Mr. Edwards's. This stood up gauntly white until near the orchard, where it was completely hidden by the high, feathery stalks of the asparagus-bed, by a row of great sunflowers, now heavy and bent with their disk-like seed-pods, and by a clump of lilac bushes. As his eye traveled along the white expanse, he gave a quick start, and his face clouded with vexation.

There in the sun, prone upon the top of the fence, dozed the bane of his life—the *Calico Cat*.

Her coat was made up of patches of yellow and white, varied with a black stocking on her right hind leg, and a large, round, black spot about her right eye, which gave her a peculiarly predatory and disreputable appearance. Solomon had disliked her at sight. Ever since he had bought the house in Ellmington he had been trying to drive her from the premises, but stay away she would not. Not all the missiles in existence could convince

her that his house was not a desirable place of abode. And she was a constant vexation and annoyance.

She jumped from the fence plump into the middle of newly planted flower-beds; she filled the haymow with kittens; she asked all her friends to the barn, where she gave elaborate musical parties at hours more fashionably late than were tolerated in Ellmington. Whenever she had indigestion she ate off the tops of the choicest green things that grew in the garden; but when her appetite was good she caught and devoured his young chickens.

Moreover, when at bay she frightened him. Once he had cornered the spitting creature in a stall. Claws out, tail big, fur all on end, she had leaped straight at his head, which he ducked, and, landing squarely upon it, had steadied herself there for a moment with sharp, protruding claws; thence she had jumped to a feed-box, thence to a beam, thence to the mow, from the dusky recesses of which she had glared at him with big, green, menacing eyes. Not since that experience, which, in spite of his soft hat, had left certain marks upon his scalp, had he ever attempted to catch her. Instead, he had borrowed a gun, and a dozen times had fired at her; but although he counted himself a fair shot, he had never made even a scant bit of fur fly from her disreputable back.

And now he knew she laughed at him. Yes, laughed at him, for she had more than human intelligence. There was something demoniac in her cleverness, her immunity from harm, her prodigious energy, her malevolent mischief, her raillery. Actually, he had grown morbid about the beast; he had a superstitious feeling that in the end she would bring him bad luck. How he hated her!

There she lay, with eyes shut, unsuspecting, comfortable, and basked in the warm September sunshine. Here at his hand was a double-barreled shotgun. The chance was too good. This vagrant, this outlaw, this trespasser, this thief—he catalogued her misdeeds in his mind as he clanged the ramrod down the barrels to see if the piece was loaded.

It was not. But ammunition was at hand. He put in a generous charge from Jim's powder-flask and rammed it home with a paper wad. He grabbed up the shot-pouch and released the proper charge into his hand. He was

disappointed; it was bird shot. Scattering as it would scatter, it could do *that* cat no harm. Nevertheless, he poured the pellets into the barrel. As he rammed home the paper wad on top of these, his eye caught the marbles lying on the table. He took one that fitted, and rammed that home also—for luck. He placed a cap, lifted the gun to his shoulder, and fired.

With a leap which sent her six feet into the air the Calico Cat landed four-square in Mr. Peaslee's chicken-yard, almost on the back of the dignified rooster, which fled with a startled squawk. She dodged like lightning across the chicken-yard, between cackling and clattering hens, went up the wire-netting walls, leaped to the roof, paused, considered, began to reflect that she had been shot at before and to wonder at her own fright, stopped, and, sitting down on the ridgepole, looked inquiringly in Mr. Peaslee's direction. She was, of course, entirely unharmed.

But other matters were claiming Mr. Peaslee's attention. Out from behind the screen formed by the asparagus plumes, the currant-bushes, the sunflowers, and the lilacs, all of which grew not so far from the spot on the fence where the Calico Cat had been sitting, fell a man!

Solomon had a mere glimpse. Standing behind taller bushes, the stranger had fallen behind lower ones, and only while his falling figure was describing the narrow segment of a circle had he been visible.

But the glimpse was enough. Mr. Peaslee's jaw dropped, his face turned white. But the next moment he gave a great sigh of relief. He saw the man rise and slip into cover of the bushes, and so disappear through the orchard. He had not, then, killed the fellow!

Relieved of that fear, he thought of himself. What would people say were he charged with firing at a man—he, a respectable citizen, a director in the bank, a grand juror? They must not know!

He silently laid the gun back against the window-sill, turned with infinite care, and tiptoed quickly back into the sitting-room, into the hall, into the street.

Not a soul was visible. Nevertheless, such was Mr. Peaslee's agitation, so strongly did he feel the need of silence, that, placing a shaking hand upon the fence to steady himself, he tiptoed along the sidewalk all the way

to his own house. There the fear of his wife struck him. He was in no condition to meet that sharp-eyed, quick-tongued lady!

He softly entered the front door and penetrated to the dark parlor, where, as no one would ever enter it except for a funeral or a wedding, he felt safe from intrusion. There he sank down upon the slippery horsehair lounge, and, staring helplessly at the severe portrait of Mrs. Peaslee, done by a lugubrious artist in crayon, wiped the sweat from his forehead and tried to collect his scattered faculties.

"Whew!" he breathed. "Whew!"



II

MEANWHILE, at the Edwards house, life had grown suddenly interesting.

When the report of the gun reached Jim, he had stopped pawing over the apple barrel, and was sitting on the upper step of the staircase at the extreme end of the loft, slowly munching an apple and thinking.

Jim was a healthy, active boy, with no more sense than naturally belongs to a boy of fifteen, and with a lively imagination, which had been most unfortunately overstimulated. Without a mother, and with a father who paid him scant attention, he read whatever he liked, and as a result, his head was full of romantic road-agents delightfully kind to little crippled daughters at home, fierce pirates who supported aged and respectable mothers, and considerate bandits who restored valuable watches when told that they were prized on account of tender associations.

His imagination had been still further fed by certain local legends and happenings, highly colored enough to excite the keenest interest. Ellmington is, as has been said, near the Canadian border. The place abounds in tales of smuggling, and the popular gossip, as gossip everywhere has a pleasing way of doing, associates the names of the most respectable and unlikely people with the disreputable ventures of the smugglers.

Of course a story of contraband trade is the more striking if the narrator can hint that the judge of probate or the most stern of village deacons might tell a good deal if he were disposed, and there are always persons ready to give this sort of interest to their "yarns."

In Ellmington lived Jake Farnum, an ex-deputy marshal and an incorrigible liar, about whom gathered the boys, Jim among them, to hear exciting stories of chase and detection, exactly as boys in a seaport town gather about an old sailor to hear tales of pirates and buccaneers. And Jake loved to hint darkly that the best people shared in the illicit traffic.

With it all, Jim's sense of right and wrong was in a fair way to become hopelessly "mixed." Exactly as boys at the seashore are prone to believe that a pirate is, on the whole, an admirable character, so these border boys, and especially Jim, had come to feel—only with more excuse, because of the generally indulgent view of the community—that smuggling is an occupation in which any one may engage with credit, and which is much more interesting than most.

Now it is not likely that Jim's father, a stern, secretive, obviously prosperous man, with an intermittent business which took him back and forth across the border, could in all this gossip escape a touch of suspicion. No one, of course, denied that he really did deal in lumber and cattle; the fact was obvious. But there were hints and whispers, shrewd shakings of the head, and more than one "guessed" that all Edwards's profits "didn't come from cattle, no, nor lumber, neither."

Latterly these whispers had become more definite. Pete Lamoury, a French-Canadian, whom Mr. Edwards had hired as a drover, and abruptly discharged, was spreading stories about his former employer which made Blackbeard, the pirate, seem like a babe by comparison. Pete was not a very credible witness; but still, building upon a suspicion that already existed, he succeeded in adding something to its substantiality.

These stories had come to Jim's ears, and Jim was delighted. The consideration that, were the stories true, his father was a criminal did not occur to him at all. Like the foolish, romantic boy he was, he was simply pleased to think of his father as a man of iron determination, cool wit, unshakable courage, whom no deputy sheriff could over-match, and who was leading a life full of excitement and danger—the smuggler king! The only thing that Jim regretted was that his father did not let him share in these exploits. He knew he could be useful! But his father's manner was habitually so forbidding that Jim did not dare hint a knowledge of these probable undertakings, much less any desire to share them.

Poor Mr. Edwards! He loved his boy, but did not in the least know how to show it. Silent, with a sternness of demeanor which he was unable wholly to lay aside even in his friendliest moments, much away from home, and unable to meet the boy on his own level when he was there, deprived of

the wife who might have been his interpreter, he had no way of becoming acquainted with his son. Anxious in some way to share in Jim's life, he took the clumsy and mistaken method of letting him have too much pocket-money.

Yet if Jim, thus unguided and overindulged, had gone astray in his conduct, Mr. Edwards was not the man to know his mistake and take the blame. He had in him a rigidity of moral judgment, a dryness of mind which made it certain that if Jim did do what he disapproved, he would visit upon him a punishment at once severe and unsympathetic. The man's air of cold strength excited in the son fear as well as admiration; his reserve kept his naturally affectionate boy at more than arm's length. Poor Mr. Edwards! Poor Jim! Misunderstanding between them was as sure to occur as the rise of to-morrow's sun.

Pat on Jim's speculations about his father's stirring deeds, the gunshot came echoing through the silent barn. Jim ran to the loft door and looked out. He saw smoke curling up from the window of his "den," and knew that it was his own gun that had been fired. Back in the room, a vague masculine figure moved hastily out of the door. Jim looked toward the orchard, and caught sight of another man disappearing in the trees. He was wild with excitement. As he knew that his father was the only person in the house, he was sure that his father had fired the shot.

The tales that he had heard, his belief in his father's life of adventure, made him conclude that here was some smuggler's quarrel. So vividly did the notion take possession of his inflamed imagination that nothing henceforth could shake it. He simply *knew* what had happened.

And his father had fled, leaving all the evidences of his shot behind him! Jim's loyal heart bounded; here he could help. He turned, raced across the loft, clattered down the steep, cobwebby stairs, slipped through the shed passage, through the kitchen, and on into his own room.

He knew what to do. Nothing must show that the gun had ever been used! He set feverishly to work. He swabbed out the weapon, and hung it on its rack over the mantel. He tossed the rags into the fireplace and covered them with ashes. He put the shot-pouch and the powder-flask into their proper drawer. Then he pulled a chair to the table and set himself to a

pretended study of Cæsar. If any one should come, it would look as if he had been quietly studying all the morning.

All this had cost considerable self-denial; for of course he boiled with curiosity about the man in the orchard. He did not dare to go out there, but now, stealthily glancing out of the window, he saw his father returning from the garden with long strides. Jim understood. His father, going out at the front door, had slipped round to the side of the house, so that it would look as if he had come from the street.

He was not surprised that his father looked stern and angry. That fellow must have done something mighty mean, he thought, to make his father shoot; and he admired at once the magnanimity and the skill which had merely winged the man, as he supposed, by way, presumably, of teaching him a lesson. Then, struck by the boldness and openness of his father's return to the house, Jim suddenly felt that he had been foolish; that the cleaning of the gun had not been needed. What man would dare, after such a lesson, to complain against his father!

Mr. Edwards walked straight into Jim's room. Aroused from his nap by the shot, he had leaped to the window and seen the man fall. He had then turned and run downstairs so quickly that he had not seen the fellow half-rise and crawl into the bushes; and, having reached the spot, he was much relieved, if somewhat staggered, to find no body. He did find tracks, for this was plowed ground; but they told him nothing of the wounded man except that he had left in a hurry on a pair of rather large feet.

He looked about for a while, and then started toward the house, determined to have an explanation with Jim. He knew Jim's gun by the sound of its report, and felt no doubt that the boy had fired the shot. What sort of culpable accident had happened?

Suffering still with the splitting headache which he had been trying to sleep off, angry with Jim for his carelessness, concerned lest the man were really injured, Mr. Edwards was in his least compromising mood.

"How did it happen?" he asked, without preface. His tones were harsh, and he fixed Jim with stern eyes.

"How did it happen!" repeated Jim, in pure surprise. Certainly his father knew much better than he how it had happened.

"Speak out!" said Mr. Edwards, impatiently. "How did you come to shoot that man? I want to know about it."

"Me!" cried Jim, in complete bewilderment. "I—I haven't shot any man, father! You know I haven't."

Mr. Edwards, never a man of nice observation, and now bewildered with anger and headache, took his son's genuine astonishment for mere pretense and subterfuge. Were not the facts plain?

"I don't want any nonsense about this," he said incisively. "I heard your gun. I saw the man fall. No one else but you could possibly have fired it. It's useless to lie, and I won't stand it. Tell me at once what happened."

"I didn't shoot him, father. You *know* I didn't!" reiterated Jim, more and more dumfounded. "I don't know how it happened, honest Injun—I don't, father!"

Mr. Edwards's mouth shut tight. He swept the room with his eyes until they rested upon the gun in the rack over the mantelpiece.

He stepped forward, took it down, and examined it. Holding it in his hands, he gazed about the floor. A rag which the ashes in the fireplace had not wholly covered caught his attention.

"You cleaned the gun and put it away," he said grimly. "Then you tried to hide the rag with which you cleaned it," and he touched the bit of cloth sticking from the ashes contemptuously with his foot. "What do you expect me to think from that?"

Jim was silent. The boy was unlike his father in many ways, but they were alike in this: they both were proud. Each would meet an unjust accusation in silence. And Jim was beginning to show another of his father's characteristics. A still anger was beginning to burn in him against this man who accused him of a deed which he himself had done, and he felt rising within him a stubborn will to endure, not to surrender. If his father was going to act like that, why, let him—

"Where is your shot-pouch?" asked Mr. Edwards.

Jim motioned toward the drawer.

"Is your powder-flask there, too?"

"Yes."

Mr. Edwards was silent. After all, he was a just man. He was trying, as well as his headache would let him, to see things straight.

"It's plain what happened," he said at last. "You had an accident and got frightened. You cleaned your gun, you hid the rags, you put away your ammunition, you got your books and pretended to study. You're afraid to tell the truth now."

Jim's face flushed hotly, but he kept silent. Such assurance, such cruelty, he had never imagined. If this was what smugglers were like—if this was a sample of their tricks—

"I'll give you one more chance to tell the truth," said Mr. Edwards. "Did you do it?"

"No, I didn't!" said Jim, and his jaw snapped close like his father's.

"Very well," said Mr. Edwards. "I'll leave you until you change your mind. You will stay here. Sarah will bring you bread and milk at supper-time. If you're willing to talk to me then, you may tell her that you'd like to see me."

He turned to go, then paused.

"It's a serious matter; and all the facts are against you. It would go hard with you in court. It will go harder if you stick to your stubborn and foolish lie. One thing more: if you don't choose to tell the truth, you will have to reckon with the law as well as with me."

Mr. Edwards, upon this, shut the door and departed. His was a stern figure, but the hurt within was very sore. This, then, he reflected bitterly, was the kind of boy he had. He suffered deeply at the discovery, which for him was unquestionable.

Jim felt outraged. He had done his loyal best to save his father from the consequences of his rash act, and now, with incredible ingenuity and cool injustice, his father was using his son's acts of helpfulness to make it appear that he had done the deed. Without a scruple, his father had made him a scapegoat.

Jim told himself that he would gladly have taken the blame had his father, as chief of the band, demanded the sacrifice of this, his devoted follower. Nay, more, he would have endured the ordeal without a murmur had his father, deeming it unsafe to enter into formal explanations, only hinted to him that this was a farce which they two must play together. If his father had only winked at him! Surely he might have done that with safety! But not to be admitted to the secret,—not to be allowed to play the heroic part,—to be used as an ignoble tool by a father who neither loved him nor knew his courage,—that was too much! He would not betray his father—no, a thousand times, no! But the day would come—

The afternoon dragged on. Jim sat there in his room, looking out into the pleasant sunshine, conscious that the boys were playing "three old cat" in the field not faraway—as rebellious and magnanimous, as hot and angry, as heroic and morally muddled a boy as one could wish to see. And looking at the affair from his point of view, not many people will blame him. It is delightful, of course, to have a pirate chief for father; but what if he makes you walk the plank?

It is amusing to think of Mr. Peaslee and Jim each shut up in his respective room; but if Mr. Peaslee in his gloomy parlor—faced by the crayon portrait of his masterful wife, a vase of wax flowers under a glass dome, the family Bible on a marble-topped table, and three stiff horsehair-covered chairs—had the advantage of being able to leave at any moment, he was even more perturbed in mind.

"Terrible awk'ard mess," he kept repeating to himself, as he mopped his damp forehead with his handkerchief, "terrible awk'ard." And indeed it would be awkward for a respectable citizen with political aspirations to be accused before a grand jury of which he is a member of assault with a dangerous weapon upon an inoffensive man.

Mr. Peaslee's reflections rose in a strophe of hope and fell in an antistrophe of despair.

"'T ain't likely it hurt him any—just bird shot," said Hope.

"Bird shot's mighty irritatin'—specially to a wrathful fellow," said Despair.

And alternating thus, his thoughts ran on: "Bird shot'll show I didn't have any serious *intent*; but mebbe a piece of the marble struck him. He went off mighty lively; don't seem as if he'd been hurt *much*; more scared hurt, likely. But he might have been hurt bad, arm or suthin', mebbe. Marble! 'T ain't anythin' but baked clay; split all to pieces prob'ly—but ye can't tell. I've heard ye can shoot a taller candle through an inch plank—and that's consid'able softer than a marble. And that pesky cat's jest as frisky as ever!"

Had any one seen him? There certainly had not been any one in the street, but where had been Mr. Edwards, Jim, the housekeeper? Where had his own wife been? There were windows from which she might have seen him returning, some from which she might even have seen him fire the fatal shot. But pshaw, there now! Probably no one had seen him at all, not even his wife, not even his victim! Probably no one would ever find out.

"Must have been some worthless feller, stealin' apples, mebbe, who won't dare make a fuss. 'T ain't likely I'll ever hear anythin' of it. 'T ain't no use sayin' anythin' till suthin' happens. What folks don't know don't hurt 'em none."

The structure of comfort which he thus built himself was shaky indeed, but it had to serve. He nerved himself to meet his wife. He must not excite her suspicion by too long an absence. She was doubtless full of curiosity, for of course she had heard the shot, and would expect him to know what it meant.

It would not do to seem to enter the house by the front door, sacred to formal occasions, so, sneaking outdoors again, he slipped round to the side of the house, and with much trepidation went into the kitchen.

His wife began the moment she saw him. "Well, of all the crazy carryings on!" she cried. "What's the Ed'ards boy firin' off guns for, right under peaceable folks' windows? I'm goin' to speak to Mr. Ed'ards right off."

"Now don't ye, Sarepty, now don't ye!" said Mr. Peaslee, in alarm.

Relieved as he was to find himself unsuspected, he did not like the idea of having his wife pick a quarrel with Mr. Edwards for what he himself had done! The less said about that shot the better he would be pleased.

"For the land's sake, why not, I should like to know?"

"Well, now, Sarepty, I wouldn't. That Ed'ards boy ain't more of a boy than most boys, I guess. Always seemed a real peaceable little feller. And Ed'ards is kinder touchy, I guess. It might make hard feelin'. 'T wouldn't look well for us to speak, bein' newcomers so. I wouldn't, Sarepty, I wouldn't. Mebbe some time I'll slide in a word, just slide it in kinder easy, if he does it again."

And Mr. Peaslee looked appealingly at his wife through his big spectacles, his eyes looking very large and pathetic through the strong lenses.

"Humph!" said his wife, unmoved. "I ain't afraid of Ed'ards, if you be."

Nor could she be moved from her determination. Mr. Peaslee was vastly disturbed.

But presently he forgot this small annoyance in greater ones. That evening after tea, when he went up to the post-office, he heard that Pete Lamoury had been shot by Jim Edwards, and was now in bed with his wounds. Jim's arrest was predicted. Young Farnsworth, who kept the crockery store, told him the news. And presently Jake Hibbard, the worst "shyster" in the village, shuffled in—noticeable anywhere for his suit of rusty black, his empty sleeve pinned to his coat, the green patch over his eye, and his tobacco-stained lips. He confirmed the report.

"Pete's hurt bad," he said, shaking his head, "hurt bad. I've taken his case. Young Edwards is going to see trouble."

The speech frightened poor Mr. Peaslee, and he was hardly reassured by the skeptical smile of Squire Tucker, and his remark that he would believe that Lamoury was hurt when he saw him. The squire had small faith in either Lamoury or Hibbard. He knew them both.

But Mr. Peaslee returned home with dragging feet. Silent and preoccupied all the evening, he went to bed early—but not to sleep. Long he lay awake and tossed, while the Calico Cat wailed on the rear fence—exultant, triumphant, insulting.

And when he did finally get to sleep, he dreamed that he was being prosecuted in court by—was it Jake Hibbard, with the green patch over his eye, or the Calico Cat, with the black patch over hers? He could not tell, study the fantastic, ominous figure of his prosecutor as he would!



III

IMMEDIATELY after breakfast on Monday morning Mr. Peaslee, in a mood of desperate self-sacrifice, started up-town to buy a knife—for Jim!

All day long on Sunday, when he had nothing to do but think, he had struggled between his fear of exposure and his sorrow for the boy. The upshot was a determination to "make it up to him" by giving him a knife. He had in his mind's eye a marvel—stag-horn handle, four blades, saw, awl, file, hoof-hook, corkscrew! Such a knife as that, he felt, would console any boy for being arrested. "Most likely 't will end right there," he said to himself.

"I guess I'd better go to Farley's," he thought, as he walked along. "Farley owes money to the bank. He won't dare to stick it on like the rest."

But when he entered the store and looked about, his face fell. Mr. Farley was not there! Willie Potter, Farley's clerk, a young man peculiarly distasteful to Solomon, lounged forward with a toothpick in his mouth. Mr. Peaslee had half a mind to go, but the thought of poor Jim held him back.

"What will you have to-day, Mr. Peaslee?" inquired Willie, affably. He winked at young Dannie Snow, who sat grinning on a keg of nails, as much as to say, "Watch me have some fun with the old man."

"I thought mebbe I'd look at some jack-knives," said Solomon, eyeing Willie distrustfully.

"Yes, sir, I guess you want the best, regardless of expense," said Willie, impudently. He well understood his customer's dislike for spending a penny. Stepping behind the counter, he drew from the show-case and held up admiringly the most costly knife in the store.

"Here, now, what do you say to this? Very superior article. Best horn, ten blades, best razor steel. Three-fifty, and cheap at the price. Can't be beat

this side of Boston. Just the article for you, sir."

And he winked again at Dannie Snow, who was pink with suppressed merriment.

"Well, now, well, now," said Solomon, taking the knife in his hand and pretending to examine it closely. "That's a pretty knife, to be sure,—to—be—sure. Real showy, ain't it? Looks as if 't was made to sell—all outside and no money in the bank, like some young fellers ye see."

Dannie Snow giggling outright, Mr. Peaslee turned and gazed at him in mild inquiry. Young Potter turned a dull red. He was addicted to radiant cravats and gauzy silk handkerchiefs, and from his "salary" of eight dollars a week he did not save much.

But just the same, Mr. Peaslee had been staggered at the price. Pretending still to examine the knife which Willie had given him, he squinted past it at the contents of the glass show-case on which his elbows rested. There all sorts of knives confronted him, each in its little box, in which was stuck a card stating the price,—\$1.50, \$1.25, 90c, 45c. The cheapest one would eat up the proceeds of three dozen eggs at fifteen cents a dozen—a good price for eggs! He had forgotten that knives cost so much.

"A good knife ain't any use to a boy," he reflected. "Break it in a day, lose it in a week. 'T wouldn't be any real kindness to him. Just wastin' money."

He pointed finally to a stubby, wooden-handled knife with one big blade, marked 25c.

"There, now," said he, "that's what I call a knife. Good and strong, and no folderol. Guarantee the steel, don't ye?"

He opened the blade and drew it speculatively across his calloused old thumb, while with his mild blue eyes, which his spectacles enormously exaggerated, he fixed the humbled Willie.

"That's a good knife for the money," said that young man. "Hand-forged."

"Sho now, ye don't say so," said Mr. Peaslee. "I guess ye give a discount, don't ye? Farley always allows me a little suthin'."

"You can have it for twenty-one cents," said Willie, much irritated. "Charge it?"

"Guess I better pay cash," Mr. Peaslee answered hastily. If it were charged, his wife would question the item.

Producing an enormous wallet—very worn and very flat—from his cavernous pocket, he deliberately searched until he found a Canadian ten-cent piece, and adding to it enough to make up the price, handed it to Potter, and left the store.

Mr. Peaslee, who remembered no gift from his father other than a very occasional big copper cent, thought himself pretty generous. Had he not spent pretty nearly the price of two dozen eggs?

But now a question occurred to him which he had not thought of before. How was he to get the knife to Jim? A gift from him would excite surprise, perhaps suspicion. It must not be known who had sent it. Ah, there was the post office! Going in, he pushed the little box through the barred window.

"Say, Cyrus," he said to the postmaster, "kinder weigh up this consignment for me, will ye?"

The postmaster weighed the box.

"That will cost you six cents," he said.

"Thank ye," returned Mr. Peaslee, and dropping the box into his deep pocket, departed. Half a dozen eggs more to get it to his next-door neighbor!

"'T ain't right," he muttered, "'t ain't right."

Uncertain what to do with his gift, but feeling, on the whole, pretty virtuous, Mr. Peaslee now started home. He thought that Jim would not be going to school, but would wait at home for the threatened coming of the

constable; but still he was not sure, and he wanted to keep the boy under his eye.

Suddenly he straightened. There was Judge Ames walking up the street, valise in hand, just from the early morning train. He had come a few days before the opening of court. Mr. Peaslee knew him slightly, and stood much in awe of him. He was greatly pleased when the judge stopped and shook hands with him.

"I am glad to hear, Mr. Peaslee," said the judge, in his precise, lawyer-like utterance, "that you are to be on the grand jury. We need men like you there."

"Thank ye, judge, thank ye," said Mr. Peaslee, overcome. And he walked on home, quite convinced that a person of his importance in the community should not be sacrificed to the comfort of any small boy.

"And I've done right by the little feller, I've done right," he assured himself, feeling the knife.

As he turned into his own yard, he cast an anxious eye over to the Edwards house. There sat Jim, elbows on knees, chin on hands, staring into space. Jim was thinking that his father, had he been a pirate chief, would not have wiped a filial tear from his eye whenever he thought of his mother; and the boy's face showed it. The spectacle greatly depressed Mr. Peaslee. The smallest, faintest question entered his mind whether a twenty-five-cent knife would console such melancholy.

To give himself a countenance while he watched events, Solomon got a rake and began gathering together the few autumn leaves which had fluttered down in his front yard. It was not useless labor, for they would "come in handy" later in "banking up" the house.

And so, presently, he saw Sam Barton, the constable, his big shoulders rolling as he walked, advancing down the street. Mr. Peaslee expected him; nevertheless his appearance gave him a disagreeable shock. Suppose the constable had been coming for him!

"Ain't arrestin' anybody down this way, be ye?" he called, with a feeble attempt at jocularly. Perhaps, after all—

"Looks like it," said Barton, succinctly.

Mr. Peaslee stepped to the fence. "'T aint likely they'll do much to a leetle feller like that, I guess," he said, searching the constable's face.

"Dunno," said Barton, passing on.

Solomon, much concerned, leaned on his rake and watched him enter the Edwards house. Jim had disappeared; there was some delay.

Mrs. Peaslee came to the door.

"Arrestin' that Ed'ards boy, be they, Solomon?" she said. "Well, serve him right, *I* say, shootin' guns off so. Like father, like son. *I* dunno as 't was the son. I'd as soon believe it of the father. Everybody knows Lamoury and he's been mixed up together. Some of his smugglin' tricks, prob'ly."

Mrs. Peaslee had taken a violent dislike to her taciturn neighbor, and she did not care who knew it. Her shrill voice seemed to her husband painfully loud, and, indeed, it was beginning to attract the attention of the group of children who had gathered about the Edwards gate.

"Sh!" hissed Solomon. "Ed'ards might hear ye. 'T would hurt us if he should take his account out of the bank."

"Humph!" exclaimed Mrs. Peaslee. "Well," she added, "you go to the hearin'. Justice is suthin', I guess."

But she said no more, and with her husband and the children awaited events—a silent group in the silent street before the silent house. The children's eyes grew bigger and bigger with excitement. Was not Jimmy Edwards going to be arrested for mur-r-rder? the horrid whisper ran. One small boy, beginning to whimper, asked if Jimmy was "going to be hung."

The occasion was solemn even to the older eyes of Mr. Peaslee. "S'posin' it was me," he said to himself.

Presently Mr. Edwards, Jim, and the constable emerged from the house. Jim looked white and frightened, but was bravely trying to bear himself like a man. Mr. Edwards, his long, shaven upper lip stiff as a board,

looked stern and uncompromising. Barton was as big and good-humored as ever.

He turned upon the little boys and girls, and, waving his arm, cried, "Scat!" They fell back—about ten feet. Thus the procession formed: Barton and Jim, then Mr. Edwards, and—at a barely respectful distance—the crowd of youngsters.

Mr. Peaslee, much moved, but trying hard not to show it, thrust his rake under the veranda with a great show of care, and joined Mr. Edwards—much to that gentleman's surprise. Solomon's heart was throbbing with a great resolution.

"I always aim to be neighborly," said he, nervously lowering his voice, for he was conscious of his wife, still standing on the veranda. "Thought I'd just step along, too. I cal'late mebbe you'd like comp'ny on his bail bond," and he jerked his thumb toward Jim.

It was out; he was committed, and Solomon heaved a great sigh, he knew not whether of relief or dismay. There was not indeed any risk in signing with Edwards, who was "good" for any bail that the justice was likely to require; but what would Mrs. Peaslee say if she knew! He glanced apprehensively toward the house.

His wife had gone in; but, evil omen! there, sitting on a fence-post, was the Calico Cat. She was placidly washing her face; and as her paw twinkled past the big black spot round her right eye, she appeared, at that distance, to be greeting him with a derisive wink.

Mr. Edwards, although his mouth shut tighter than ever at the mention of bail, was surprised and touched. "Thank you," he said. "It's kind of you to think of it."

In the village, Sam ushered them into the musty law office of Squire Tucker, justice of the peace. The squire was a large, fat man, clothed in rusty black, with a carelessly knotted string tie pendent beneath a rumpled turn-down collar. He had a smooth-shaven, fat face, lighted by shrewd and kindly eyes, which gleamed at you now through, now over, his glasses. When the party entered he was writing, and merely looked up under his big eyebrows long enough to wave them all to chairs.

Jim sat down, with the constable behind him and his father at his left, and studied the man in whose hands he thought that his fate rested. He watched the squire's pen go from paper to ink, ink to paper, and listened to its scratch, scratch, and to the buzz of a big fly against the dirty window-pane. Ashamed to look at any one, he looked at the lawyer's big ink-well—a great, circular affair of mottled brown wood. It had several openings, each one with its own little cork attached with a short string to the side of the stand. He had never seen one like it before.

Then some one entered the room. Jim, looking sidewise, recognized Jake Hibbard, and began covertly to study his face. He knew that this flabby-faced, dirty man, with the little screwed-up eyes, and the big screwed-up mouth, stained brown at the corners with tobacco, was Pete Lamoury's lawyer. Familiar for many years to his contemptuous young eyes, Jake now looked sinister and dangerous. What were these men going to do to him?

Amid his fluttering emotions and rushing thoughts one thing only stood fixed and clear: he would not tell on his father. Some day, when all trouble was past, he would let his father know that he knew all the time. Then he guessed his father would be sorry and ashamed. Now, since his father would not take him into his confidence, he would not pretend he did the shooting. That would be his only revenge.

Finally, Squire Tucker, pushing his writing aside, ran his fingers through the great mass of his tumbled gray hair, and looked quizzically at Jim over his glasses. "So this," he said, "is the hardened ruffian of whom our esteemed fellow citizen, Mr. Lamoury, complains?"

And indeed Jim, although stubborn, did not seem very dangerous.

The squire looked about the room.

"Is he represented by counsel?" he asked.

"No, I represent him," said Mr. Edwards.

"The charge against him is assault with intent to kill, I believe?" and he looked with demure inquiry at Jake Hibbard, who nodded with a wrath-clouded face. Tucker was not taking the case seriously.

"Well, young man," said the justice to Jim, "what's your explanation of this?"

"We'll waive examination," said Mr. Edwards, briefly.

The squire leaned back in his chair. "I suppose," he said, with evident reluctance, "I shall have to hold him for the grand jury. But I guess the safety of the community won't be greatly threatened if I let him out on bail. I should think a couple of hundred would do. I suppose there'll be no difficulty about the bond?"

The tone of the proceedings suited Mr. Peaslee well. In his nervousness and abstraction he had backed up to the rusty, empty iron stove at the end of the room, and stood there, with spread coat-tails, listening intently. On hearing the amount of bail, he gave a sigh of relief. His incautious offer had brought him no dangerous risk.

Mr. Edwards, however, did not answer. Instead, consulting the justice with a look, he turned and beckoned Jim to follow him into the hall.

"James," he said, "this is the last chance I shall give you. If you confess to me, I will see that you have proper bail. If you do not, I shall let the law take its course. You may choose."

Jim was exasperated. If his father wished to be mean, let him *be* mean; at least he might drop this farce, this irritating pretense. He lost his temper.

"I don't care what you do!" he said fiercely. "Send me to jail if you want to. I guess I can stand it!"

"Is that all you have to say?"

Jim replied with a rebellious glance.

"Very well," said his father. "Then we will go back." Once in the room, he stepped to the squire's desk, and talked with him in low tones.

Then the justice turned to Jim again, a new gravity in his jolly face.

"Your father," he said, "refuses to go on your bond. Have you any sureties of your own to offer?"

"No, sir," said Jim.

Mr. Peaslee was outraged. What kind of a father was this! He half started forward to offer to be one of the two sureties which the law required, but—no, he dare not. The second surety might prove to be any sort of worthless fellow. But Jim in jail! He had not for a moment dreamed of that. He was very indignant with Mr. Edwards.

Meanwhile, Jake Hibbard was studying Mr. Edwards's face with puzzled attention. He had supposed that the lumber dealer, whom he knew to be well-to-do, would have paid anything, signed any bond, to protect his boy from jail. He was disconcerted. He drew his one hand across his mouth nervously.

"Well, Mr. Barton," said Squire Tucker, "I don't see but what you'll have to take this young man over to Hotel Calkins."

"Hotel Calkins" was the name which local wit gave to the county jail. The words sent a cold shiver down Mr. Peaslee's back. They stung him into generosity. As Barton and his prisoner, followed by Mr. Edwards and Jake, brushed by him on their way to the door, he slipped the knife into Jim's hand. When the boy, trying to keep back the tears, looked up inquiringly, he murmured, in agitation:—

"Don't ye care, sonny! Now don't ye care!"

He was greatly stirred—or he would not have been so incautious as to make his present in person and in public.



IV

WHEN Nancy Ware, Jim's pretty teacher, heard that Mr. Edwards had let Jim go to jail, she was hotly indignant. She liked Jim, and laughed a little over him, for she knew he adored her. In her view he was a clumsy, nice boy; awkward and shy, to be sure, but rewarding her friendliness now and then with a really entrancing grin. She liked his imagination, she liked his loyalty, and she liked his dogged resolution.

She heard the news at the noon hour on Monday, and after her dinner she hurried at once to the store of Fred Farnsworth. To him she roundly declared that Mr. Edwards was a brute, a view of the man which struck Fred as a bit highly colored.

Fred was thirty-one or thirty-two years old, a sensible, humorous fellow, with considerable personal force. He was very proud of the handsome shop over which hung the sign, "Frederick W. Farnsworth, Fine Crockery and Glassware," and still prouder of his engagement to Miss Ware. He was the second grand juryman from Ellmington.

"Oh," said he, "Edwards isn't a bad sort of man. He isn't very sociable. I guess he wouldn't take much impudence, even from that boy of his. They say Jim wouldn't own up, and the old man won't do anything for him till he does."

"If Jimmie Edwards says he didn't fire that gun, he didn't," said Nancy, positively. "Jimmie isn't the lying kind. I know Mr. Edwards. I ought not to call him a brute, I suppose. But he's one of these obstinate men who will do anything they've made up their minds to do, even if you prove to them that they're wrong, even if it hurts them more than it does any one else. He's just got it into his head that Jimmie ought to confess, and he'd let him go to the gallows before he'd back down."

Nancy spoke with animation, her color rose and her eyes grew bright, and Fred looked and listened admiringly. He was skeptical about Jim, but

he was struck with the accuracy of the portrait of Edwards.

"I guess that's about so," he said.

"And when I think of that poor boy shut up in that awful jail, locked into a cell, when he ought to be out-of-doors playing ball and having a good time, it makes my blood boil!" continued Miss Ware. "Now, Fred," she concluded, with pretty decision, "you must stop it."

Fred laughed.

"Isn't that a pretty large order?" he asked. "Squire Tucker put him there. I guess it's legal."

"You can do *something*," said his betrothed. "Go to see Jimmie. See if you can't find out what's the matter. Jimmie likes you, perhaps he'll tell."

"I didn't know Jim had any particular partiality for me," said Fred, but he felt kindlier toward the boy in spite of himself.

"If you can only find out what really happened, I know we can get him out," averred Miss Ware.

"Why don't you go yourself?" said Farnsworth.

"I can't,—not till five o'clock. Of course I'm going then!"

"That's about four hours off," said Farnsworth.

"But I want something done *now*!" exclaimed Nancy.

"Oh!" said Fred, humorously.

"Will you go?"

"Of course. I'll start at once." Fred dropped his banter. "I'll tell you what, Nancy. I may not be able to do much right off, but I'll promise you that he has a fair chance before the grand jury."

Farnsworth started at once for the jail. It was a poor place for a boy, he reflected, as he rang the jailer's private bell. Calkins himself was not there,

and his wife came to the door. She knew Farnsworth; and when he asked if he might see Jim she laughed a little, and told him to "step right in."

"Hotel Calkins" was a brick building which looked pleasantly like a private dwelling, as, in fact, a good half of it was. In this front half dwelt the jailer; in the rear half, separated from the living quarters by a thick wall and heavy doors, was the jail proper. There Farnsworth expected to be led.

But not at all! Mrs. Calkins ushered him into her own kitchen, where a wash-tub showed what she was doing, where the afternoon sun and sweet September air poured in at the open windows, and where a canary in its cage was singing cheerily.

Here Farnsworth was much surprised to see Jim, curled up in Mrs. Calkins's own rocking-chair, eating a large red-cheeked apple which he was dividing with a brand-new knife!

"Squire Tucker told Mark," said Mrs. Calkins, enjoying the joke, "that he guessed James would like our society full as well as that of the prisoners."

As for Jim, he grinned affably, and took another slice of his apple.

The awful picture which Miss Ware had drawn of Jim's dreadful isolation and misery and her own indignant sympathy rushed upon Farnsworth's mind, and were so comically out of relation with the facts that he sank weakly into the nearest chair and roared.

"This—is—the way—you go to jail—is it?" he gasped.

Mrs. Calkins smiled in sympathy, and Jim, half-suspecting that he ought to be offended at this frank mirth, looked sheepishly at the floor.

Farnsworth recovered himself. "A mighty good friend of yours," he said, "sent me over here."

"Miss Ware?" asked Jim, much pleased.

"Yes. She's coming herself right after school, loaded down with things to console your desolate prison life, I believe," and Farnsworth had to stop

to laugh again. "But she wanted me to start right in and help you out of this, and that's what I'm here for."

"Thank you," said Jim, embarrassed, but polite. But it struck Farnsworth, as he said afterward, that the boy "shied" a little.

"Miss Ware says," he went on, "that she doesn't believe you fired that shot, and she wants you to tell me exactly what did happen. Now if we can show that you didn't shoot, I can get you out of here quick."

"What they going to do to me?" said Jim.

"That depends. It makes a difference how much Lamoury's hurt. The penalty might be severe if he's got a bad wound. But even then, if we could show that you didn't know he was there, or that the gun went off by accident, or that you were firing at something else, it would make a big difference. And if you can show that you weren't there at all—why, out you go, scot-free. But, Jim, you can see yourself that if you don't tell what you know, everybody'll think that you shot and meant to hurt Lamoury, and then it might go pretty hard with you. Now come, tell me what happened."

"You'd better tell, Jimmie," said Mrs. Calkins, straightening up from her wash-tub. "You won't find any better friends than Mr. Farnsworth and Miss Ware."

The young man, as he talked, watched the boy curiously. Jim flushed and squirmed, and looked now at the floor and now out at the window, with a marked uneasiness and embarrassment that greatly puzzled his friend. And when he stopped, and the boy had to answer, his distress became really pitiable.

"Can't you tell me, Jim?" Mr. Farnsworth hazarded, after a little, putting a kindly hand on the boy's arm, while Mrs. Calkins stood quiet by her tub in friendly expectation.

But Jim remained dumb.

After waiting a little, Farnsworth, seeing the boy so miserable, took pity on him.

"Well, never mind, Jim," he said. "You needn't tell if you don't want to."

He would have to let Nancy coax it out of him. But he was puzzled, impressed with a sense of mystery and with a growing conviction that the boy was shielding some one else. He began to talk cheerfully of other things, hoping that Jim might perhaps drop a useful hint, or, at least, that the boy would gain confidence in him as a friend. By chance he asked:—

"Where did you get the knife, Jim?"

"Mr. Peaslee gave it to me."

"Peaslee!" exclaimed Farnsworth. He well knew the "closeness" of his fellow juror.

"It isn't much of a knife," said Jim, apologetic but pleased. Jim's views of the world were changing: his father, although a bandit chief, had let him go to jail, while this stingy old man, with no halo of adventure about him, gave him a knife; and here were Miss Ware and Mr. Farnsworth and Mrs. Calkins and the jailer, none of them smugglers, who were very kind.

Farnsworth rose to go. Then Jim, summoning all his courage, asked a question which had long been trembling on his lips.

"What do they do to smugglers, Mr. Farnsworth?"

"Fine 'em, or put 'em in jail, or both. Why?"

"Nothing much," said Jim, but obviously he was cast down.

Farnsworth walked thoughtfully toward his store. "By George!" he thought suddenly. "I wonder—"

The gossip about the senior Edwards had occurred to him, and at the same time he remembered the quarrel with Lamoury.

"But what nonsense!" he thought. "If Edwards wanted to shoot any one he wouldn't do it in his own back yard, and he wouldn't treat his own boy that way, either." Still, the idea clung to him.

And then he thought of Nancy, and chuckled. "If she comes to the store before she goes to the jail I won't tell her what she'll find there," he promised himself.

Meanwhile, Mr. Peaslee felt a growing discomfort. He ate his dinner and answered the brisk questions of his wife with increasing preoccupation. Like Miss Ware, he was picturing Jim solitary and suffering in his lonely cell. With the utmost sincerity and ingenuousness he condemned Mr. Edwards.

"Hain't he got any feelin' for his own flesh and blood?" he asked himself. "'T ain't right; somebody'd ought to deal with him."

As he pottered about his yard after dinner, he finally worked himself up to the point of speaking to Edwards himself.

Even his righteous indignation would not have led him to this undertaking had he known Mr. Edwards better, or realized the father's present mood. Hurt exceedingly by Jim's lying and contempt of his wishes, hurt even more through his disappointed desire to help his boy, Mr. Edwards was sore and sensitive, discontented both with Jim and with himself. He did not want Jim in jail, he told himself; and the neighbors who were so uniformly assuming that he did might better give their thoughts to matters that concerned them more. He would get the boy out of jail quick enough if the boy would only let him.

As he stepped out of the house to do an errand at the barn, Mr. Peaslee hailed him over the dividing fence. Somewhat put out, Mr. Edwards nevertheless turned and walked toward his neighbor. Mr. Peaslee, leaning over the fence, began.

"Ed'ards," he said, reaching out an anxious, deprecatory hand, "don't ye think you're jest a leetle mite hard on that boy o' yourn—"

He got no further. Edwards gave him a look that made him shiver, and cut the conversation short by turning on his heel and marching toward the barn.

"Dretful ha'sh man, dretful ha'sh!" Mr. Peaslee muttered to himself. "Nice, likely boy as ever was. If I had a boy like that, I swan I wouldn't treat

him so con-sarned mean!"

He turned away much shocked, and saw the Calico Cat watching him ironically from the chicken-house. "Drat that cat!" said he. "I ain't goin' to stay round here—not with that beast grinning at me."

He got his hat and started up-town, not knowing in the least what he intended to do there. He stopped, however, at every shop window and studied baseballs, bats, tivoli-boards, accordions. He was beginning to wonder if a twenty-five-cent knife was enough to console Jim for his unmerited incarceration.

He was gazing forlornly in at the window of Upham's drugstore, where some half-dozen harmonicas were displayed, and wondering if Jim would be allowed to play one in his dungeon cell, when Hibbard spoke to him.

He drew the lawyer aside, and, peering closely into his face with anxious eyes exaggerated by his spectacles, said insinuatingly:—

"Jest 'twixt you and me kinder confidential, Pete ain't hurt bad, is he? You don't mind sayin', do ye?"

Jake drew himself up, surprised and suspicious. Did the old fool think him as innocent as all that?

"He's hurt bad, Mr. Peaslee, bad," he said, with dignity. "Of course it isn't fatal—unless it should mortify." He waved his hand deprecatingly. "I can't imagine what that Edwards boy used in his gun."

Mr. Peaslee knew: the marble! He trembled. Still, he knew Jake's reputation. A shrewd thought visited his troubled mind.

"What doctor's seein' him?" he asked.

"Doctor!" exclaimed Hibbard, irritated. "Doctor! You know these French Canadians. They're worse scared of a doctor than of the evil one himself. Pete's usin' some old woman's stuff on his wounds,—bear's grease, rattlesnake oil, catnip tea,—what do I know? I can't make him see a doctor."

"Some doctor'll have to testify to court, won't they?" persisted Mr. Peaslee.

"Oh, I'll look out for that, don't you fear!" the lawyer said easily; but nevertheless he made a pretext for leaving the old man.

Perhaps had Mr. Peaslee's fears not been so keen, he would have taken some comfort from this conversation; but as it was he felt that the lawyer was dangerous; he feared that Pete really was badly hurt. It would go hard, then, with Jim. It would, by the same token, go hard with himself should he confess.

Suddenly he turned and rushed into Upham's store.

"Upham," said he, "I want *that*!"

And he pointed straight at a big harmonica with a strange and wonderful "harp attachment"—bright-colored and of amazing possibilities.

Upham, a neat little gentleman with nicely trimmed side-whiskers, who was always fluttered by the unexpected, hesitated, half opened his mouth, and then forgot either to shut it or to speak.

"Why, Mr. Peaslee," he stammered at last, "it's real expensive! You—it's two dollars and seventy-five cents."

"Don't care nothin' what it costs," said Mr. Peaslee, who was in a hurry for fear lest he should think twice.

When he came out of the store with the harmonica in his hands, he almost stumbled into Miss Ware. She was on her way to Jim, and, of course, her mind was full of his affairs. Here was Mr. Edwards's next neighbor. She impulsively stopped to ask if the misguided father still held to his resolution about Jim.

Mr. Peaslee had reason to know that he did, and said so. "I tell ye, Miss Ware," said he, with much emotion, "he belongs to a stony-hearted generation, and that's a fact. He ain't got any compassion in him, seems though."

"It's a shame, a perfect shame!" exclaimed Nancy.

"'T ain't right," said Mr. Peaslee, with a warmth which surprised the young woman, and made her warm to this old man, whom she had always

thought so selfish. "'T ain't right—your own flesh and blood so."

"Well," said Miss Ware, "I'm going to the jail now. I want to see Jimmie. It must be awful there."

"Well, now, that's real kind of ye," responded Mr. Peaslee. "I wonder now if you'd mind taking this along to him," and he offered her the paper parcel. "It's a harmonica, I guess they call it. It's real handsome. It cost consid'able—a pretty consid'able sum. I feel kinder sorry for the leetle feller, and I don't grudge it a mite." And he kept repeating, in a tone which suggested whistling to keep your courage up, "Not a mite, not a mite."

Miss Ware smothered a laugh on hearing what the present was. She must not hurt the feelings of this kind old man!

"Oh," said the little hypocrite, "that's nice! Jimmie'll be so pleased."

But perhaps the harmonica pleased Jim as much as the schoolbooks which the school-teacher, with a solicitous eye on her pupil's standing in his studies, was taking to him. Saying good-by to Mr. Peaslee, Miss Ware, books and harmonica in hand, went on her way to visit the afflicted boy in his dungeon. Meanwhile Jim, turning the wringer for Mrs. Calkins, and listening to her stories of "Mark's" prowess with all sorts of malefactors, was having an excellent time. He had decided to be a sheriff when he grew up.



V

THE day of the assembling of the grand jury for the September term of the Adams County court finally dawned. How Mr. Peaslee had looked forward to that day! How often had he pictured the scene—the bustle about the court house; the agreeable crowd of black-coated lawyers, with their clever talk, their good stories; the grave judge, and the still graver side judges; the greetings and hand-shakings amid much joking and laughter; the county gossip among the grand jurors in the informal moments before they filed into the courtroom to be sworn and to receive the judge's charge; himself, finally, in his best black coat and cherished beaver hat, there in the midst of it—important, weighty, respected, a public man!

He had cherished the vision of himself walking up the village street on that first morning, a dignitary returning the cordial and admiring salutes of his village friends. He had seen himself later in the jury-room, shrewdly "leading" the reluctant witness, delivering weighty opinions on the bearing of testimony, and making all respect him as a marvel of conservatism, dignity, and wisdom. This was to be one of the most important and pleasurable days of his life, the rung in a ladder of preferment which reached as high as the state-house dome!

And when that day came, it rained; steadily, gloomily, fiercely rained. Solomon was not allowed to wear his best clothes. When, peering out of the window, he hopefully said he "guessed mebbe 't was goin' to clear," his wife invited him tartly to "wait till it did."

She insisted that he put on his every-day clothes, and thus arrayed, and without meeting a single villager to realize the importance of his errand, he waded up to the court house, the pelting rain rattling on his old umbrella, the fierce wind almost wrenching it inside out.

There was, of course, no parade on the courthouse steps for the benefit of a wondering village, as there would have been had the day been fine.

Instead, the men, steaming with wet, stood about uncomfortably in the corridors, muddy with the mud from their feet, wet with the drip from their umbrellas. The air in the court house was close, and every one felt uncomfortable and depressed.

Mr. Peaslee, having greeted three or four men whom he knew, found himself jammed into a corner behind four or five jurors who were strangers to him, but he was too disheartened to try to scrape acquaintance with them. He felt lonely and helpless.

He looked enviously over to the other end of the corridor, where Fred Farnsworth, Eben Sampson, and Albion Small were standing together. In contrast with the others, these men were laughing. Albion was "consid'able of a joker," Mr. Peaslee reflected gloomily.

Then old Abijah Keith stormed in, and in his high, shrill voice began immediately to utter his unfavorable opinion of everything and everybody.

"Well, if he ain't here again!" exclaimed, in disgust, Hiram Hopkins, one of the men in front of Solomon. "Cantankerest old lummux in the whole state—just lots on upsetting things. Abijah!" he snorted. "Can't Abijah, I call him!"

Mr. Peaslee shrank back into his corner nervously. He knew this old tyrant and dreaded him.

Not much was done that first day. The clerk swore them; the judge charged them, and appointed the sensible, steady Sampson foreman. Then they retired to the jury-room—a big, desolate place, wherein was a long, ink-spattered table surrounded by wooden armchairs and spittoons. The grand jurors seated themselves, and were solemnly silent while John Paige, the state's attorney, began the dull task of presenting cases. Mr. Peaslee found that he had nothing brilliant to say.

As a matter of fact, his own troubles were making him see everything yellow. The jurymen did not seem to him as agreeable a lot as he had expected, and as for Paige, he irritated Solomon beyond measure.

Paige was an able young man and a good lawyer, and was entitled to the position which he had attained so young; but, the son of a man of rather

exceptional means, he had been educated at a city college, and had a sophistication which Solomon viewed with deep suspicion. Moreover, he discarded the garb which Mr. Peaslee regarded as sacred. He was not in black. Instead, he wore a light gray business suit, his collar was very knowing in cut, and his cravat of dark blue was caught with a gold pin.

"Citified smart Aleck," was Mr. Peaslee's characterization. To tell the truth, he mistrusted the man's ability, and was afraid of him. If that fellow knew, Mr. Peaslee felt that it would go hard with him. Generally, Paige was popular.

Solomon had, of course, been painfully awake to every hint and intimation in regard to Jim's case. He had seen Jake Hibbard, that carrion crow of the law, loafing about the corridors, and the sight had made him shiver. He had next heard that Jim's case would be quickly called,—probably on the next day,—news producing a complex emotion, the elements of which he could not distinguish. Furthermore, a remark or so which he overheard indicated that the out-of-town men were inclined to take a harsh view of the matter. And reflecting on all these things, he paddled home through the depressing wet.

And the next day it rained.

More and more perturbed, as the climax approached, Mr. Peaslee took his place in the jury-room, and sat there with unhearing ears. He sat and thought and delivered battle with his conscience, which was growing painfully vigorous and aggressive. But, after all, perhaps they would not find a true bill, and then Jim would go free, and he could breathe again. Mr. Peaslee clung to the hope, and hugged it. It was the one thing which gave him courage.

"Gentlemen of the grand jury," suddenly he heard Paige saying, "the next case for you to consider is that of James Edwards, aged fifteen, of Ellmington, charged with assault, with intent to kill, upon one Peter Lamoury, also of Ellmington."

And he proceeded to read the complaint, which, in spite of the monotonous rapidity with which he rattled it off, scared Mr. Peaslee badly with its solemn-sounding legal phraseology.

"Gentlemen," said Paige, laying down the paper, "there was no eyewitness to the actual assault; and only three people have any personal knowledge of the event—Mr. Edwards, the defendant's father, the accused himself, and the complainant. Mr. Lamoury, his counsel tells me, is in no condition to appear. But I have here," lifting a paper, "his affidavit, properly executed, giving his version of the matter. The boy's father, however, is at hand. Probably the jury would like to question him."

"It seems to me," said Mr. Sampson, "that Mr. Edwards would be pretty apt to know the rights of it, if he's willing to talk. I guess we'd better hear him."

The state's attorney stepped to the door.

"This way, please!" he called, and Mr. Edwards entered the room.

Farnsworth and Peaslee both studied the man's face closely, although for very different reasons, and both found it sternly uncompromising.

"Please take a chair, Mr. Edwards," said Paige, and in a swift glance rapidly estimated the man. "Here's some one who won't lie," he thought, impressed.

"Now," he resumed, "will you kindly tell the members of the grand jury what you know of the case?"

Mr. Edwards cleared his throat painfully. Determined as he was to let his rebellious boy take whatever punishment his mistaken course might bring, he now began to wish that the punishment would be light. His confidence that Jim needed only to be pushed a little to confess was somewhat shaken, and the charge was really serious. He felt a desire to explain, to palliate, to minimize.

"Gentlemen," he said, "my boy's always been a good boy. I can't believe that he meant to hurt Lamoury or any one else. It must have been some accident—"

"Facts, please," said Paige, crisply.

Mr. Peaslee caught his breath indignantly. He had been entirely in sympathy with Mr. Edwards's soft mode of approaching his story. Paige

seemed to him unfeeling.

"I will answer any questions," said Mr. Edwards, stiffening.

"Did you hear any shot fired?" began Paige.

"Yes."

"Where were you?"

"I was asleep in the room above Jim's."

"Was Jim in his room?"

"I suppose so."

"You suppose so. Don't you know?"

"No, I don't know."

"But to the best of your knowledge and belief he was there?"

"Yes."

"And the shot waked you?"

"Yes."

"What did you do on hearing the shot?"

"I jumped to the window."

"Tell what you saw, please."

"I saw a man fall in the orchard, and hurried out to see if he was hurt. But he was gone when I got there."

"Then what?"

"I went to speak to Jim."

"He was in his room, then, immediately after the shot?"

"Yes."

"Ah! And when you spoke to him, did he admit firing the shot?"

"No."

"Did he deny it?"

"Yes."

"Where was his gun?"

"In the rack over the mantel."

"In the rack over the mantel," repeated Paige, slowly, glancing at the jurors. "Did you examine it?"

"Yes."

"What was its condition? Did it show that it had been fired?"

"No; it was clean."

"It was clean," repeated Paige. "I understand that it was a double-barreled, muzzle-loading shotgun. Were there any rags about?"

"Yes."

"Where were they?"

"One was in the ashes of the fireplace."

"Look as if some one had tried to hide it?"

"Yes"—reluctantly.

"If it was that sort of gun, there must have been a shot-pouch and powder-flask. Where were they?"

"In the drawer where Jim keeps them."

"Everything looked, then, as if no shot had been fired?"

"Yes."

"Was there any one besides yourself and your son in the house?"

"No."

"Your housekeeper?"

"She had stepped out."

"To the best of your knowledge, then, there was no one about to fire the shot except your son?"

"No."

"That will do," said Paige, with an accent of finality. "That is," he added, with the air of one who observes a courteous form, "unless some of the grand jurors wish to ask a question."

There were various things which were new to Mr. Peaslee in this testimony. He had supposed that Jim had been picked as the guilty person by a process of mere exclusion; he had had no idea that the case against him was so strong. How had the boy got to the room so soon after he himself had left, and why had he gone there? And why, why had he cleaned the shotgun? The grand jury must believe in his guilt. And when the case came to trial, what could Jim say to clear himself? It was going hard, hard with the boy.

Mr. Peaslee's mouth grew dry, his palms moist; he moved uneasily in his chair. Once or twice he felt sure that the next instant he would find himself on his feet, but the minutes passed and he still was seated.

And Farnsworth, anxious, for the sake of his betrothed, Miss Ware, to help Jim, was nonplussed. There were two possible explanations of Jim's cleaning the gun, if he did clean it: the first, that Jim was protecting himself; the second, that he was shielding some one else.

But the second theory seemed quite untenable. Farnsworth had made some cautious but well-directed inquiries about Mr. Edwards, and had satisfied himself that the rumors about his smuggling were nothing but malicious gossip. There was not a man of greater honesty in the state. The boy must have done the shooting. Miss Ware would have to give it up. Still, he would hazard a question.

"Mr. Edwards," he said, "Lamoury worked for you once, didn't he?"

"Yes."

"You quarreled, didn't you?"

"I discharged him for intemperance."

"There was no bad blood?"

"Lamoury was angry, I believe."

Farnsworth stopped; there was nothing to be gained by this course of questioning in the way of clearing Jim. Of course later, the point that Lamoury had a grudge against the family might have importance, although he could not see just how. Some one else surely heard that gunshot. It was incredible that the neighborhood should be so deserted. If only there were another witness!

The other jurors had no questions. They were, to tell the truth, a little impatient. It was near the dinner-hour, and they were hungry. The case seemed perfectly plain to them. It was not likely, they argued, that the boy's father could be mistaken.

"You may go," said Paige to Mr. Edwards.

"I don't see," he began, when the witness had left the room, "any need for our going further into this case. Whatever we may think of the animus of the complainant,—I take it that was what you wished to bring out, Mr. Farnsworth,—there seems to be no question but that the boy fired the shot. The presumption seems strong also that he intended to hit. Were there any accident or any good excuse, the boy could, of course, have no motive not to tell it. I suggest that a true bill be found at once, and that we proceed to more important matters. I want to remind you that we have a great deal of work before us."

"Well, gentlemen," said Sampson, "I guess we're pretty much of a mind about this. If no one has any objections, I guess we'll call it a vote." He looked round.

"As we're all agreed—" he began.

"Just a moment, Sampson!" suddenly exclaimed Farnsworth. It had just then flashed over him that Mr. Peaslee, the kind Mr. Peaslee, who gave Jim knives and harmonicas, was next-door neighbor to the Edwardses. If he had been at home when the shot was fired, he must have heard it, and he might have seen some significant thing which questioning might bring out. Of course, if Peaslee had seen anything, he would have spoken, but he might have overlooked the importance of some fact or other.

"Just a moment, Sampson!" he said, and put up his hand. Then he swung sharply in his chair and put the question:—

"Peaslee, where were you when that shot was fired?"



VI

PEASLEE, where were you when that shot was fired?" asked Farnsworth, and as he spoke he turned and looked toward Solomon, whose seat was some three or four places to his left, on the same side of the table.

Had the question not been uttered, it would have died upon his lips, so much surprised was he at what he saw.

Mr. Peaslee, white and trembling with some strong emotion, had his hands upon the table and was raising himself, slowly and painfully, to his feet. He rolled his eyes, which looked bigger and more pathetic than ever behind his glasses, toward Farnsworth at the sound of his voice, but the young man knew instinctively that Solomon, moved by some strong idea of his own, had not grasped the question.

"Gentlemen," Mr. Peaslee began, in shaky tones, "I guess I got a word to say afore ye find a true bill agin that little feller. He's as peaceable a boy as ever I saw, and I guess I can't let him stay all bolted and barred into no jail, when it don't need anythin' but my say-so to get him out. Ye see, gentlemen,"—Solomon paused, moistened his dry mouth, and cast a timorous look over the puzzled faces of the jurymen,—"ye see, 't was me that shot Lamoury."

Not a sound came from the grand jury; the members sat and stared at him in blank wonder, hardly able to credit their ears. Paige, the state's attorney, who was making some notes at the time, held his pen for a good half-minute part way between his paper and the inkstand while he gazed in astonishment at Peaslee. To have a grand juror, a sober, respectable man, rise in the jury-room and confess that he is the real offender in a case under consideration, is not usual. The surprise was absolute.

For Farnsworth, it was more than a surprise; it was a relief. Then his betrothed had been right; Jim had not fired the shot! He felt a glow of admiration for Nancy's sure intuition and loyalty to her pupil. He rejoiced

that Jim was cleared for her sake and for the boy's. Insensibly he had grown more and more interested in Jim and attached to him. Now—everything was explained.

Everything? No, Jim's strange activity in concealing the evidences of the shot, his queer reserve when questioned as to what he knew—these seemed more perplexing than ever.

Farnsworth, hoping for light upon these points, settled back in his chair to listen. Mr. Peaslee had more to say.

"It kinder goes agin the grain," Solomon resumed, with a weary, deprecatory smile, "to own up you've been actin' like a fool, but I guess I got to do it.

"This was the way on 't: I stepped over to Ed'ards's jest to talk over matters and things. Well, I couldn't seem to raise anybody to the front of the house, so I kinder slid into the boy's room to see if there wasn't somebody out back. There wa'n't. There didn't seem to be anybody to home.

"Now, gentlemen, seems as though you'd see how 't was when I tell ye. There's an old white and yaller cat, with a kinder sassy patch over her eye,"—Mr. Peaslee's meek voice here took on a trace of heat,—"*that's been a-pesterin' the life out o' me goin' on a year. I guess ye know how 't is—one of them pesky, yowlin', chicken-stealin', rusty old nuisances that hain't any sociability to 'em, anyhow.*

"Well, there she was a-settin', comfortable as a hot punkin pie, and lookin' as if she owned the place. And there was the boy's gun right there handy. The cat riled me so, I jest loaded her up. 'T wa'n't in human natur' not to, now was it? 'T wa'n't nothin' but bird shot, so I sorter stuck in a marble. It couldn't do no harm, and it might kinder help a leetle. And I just fired her off. I didn't expect to hit any French Canadian; I didn't know there was any of the critters round.

"Then when I see a feller fall out of the bushes I was scared, now I tell ye. Here I was, member of the grand jury, and everything, and it didn't somehow seem right and fittin' for no member of the grand jury to be fillin' up a feller human bein' with bird shot an' marbles. I guess I didn't think much what I was a-doin' of, no-how. 'T any rate, I jest sneaked off home,

and then I jest let things slip along and slide along till here I be. I guess if a true bill's got to be found agin any one, it's got to be found agin me."

And Mr. Peaslee sank huddled and hopeless into his chair.

His fellow members were for a moment silent. But soon this tale of a cat, bird shot, and an unexpected Canadian began to disclose a comic aspect; the plight of poor, respectable Mr. Peaslee, in all the fresh honors of his jurorship, began to show a ludicrous side; their own position as grave men seeing what they thought a serious offense change, as by magic, into a farcical accident, bit by bit revealed its humor.

Sampson, the foreman, glanced at Paige, the state's attorney. The young man's face wore an odd expression. Their eyes met, and Sampson's mouth began to twitch. Albion Small, who was "consid'able of a joker," suddenly choked. Farnsworth, having revealed to him in a flash the significance of the harmonica "with harp attachment," gave way and laughed outright.

Smiles appeared on faces all round the table; and as the comicality of the whole affair more and more struck upon their astonished minds, the smiles became a general laugh, the laugh a roar. And this mirth had so good-humored a note that Solomon, taking heart, looked about the table with a sheepish grin.

But his heart sank and his grin vanished when his eyes fell upon Abijah Keith. For Abijah did not smile. He sat grim as fate, stern disapproval of all this levity expressed in every deep fold of his wrinkled old countenance.

A formidable person was Abijah. He had a great brush of white hair, which stood up fiercely from his narrow forehead; a high, arched nose like the beak of a hawk, on which rested a pair of huge round spectacles; a mouth like a straight line inclosed between a great parenthesis of leathery wrinkles. Up from under his old-fashioned stock, round a chin like a paving-stone, curled an aggressive, white, wiry beard, and his blue eyes were steel-bright and hard.

"Can't see what you're cackling so for!" he exclaimed, his shrill accents full of contempt. "Actin' like a passel of hens! There's a man shot,

ain't they? Somebody shot him, didn't they? He"—and Abijah pointed a knotted, skinny, hard old finger at the shrinking Solomon—"he shot him, didn't he? Ser'us business, *I* call it. Guess the grand jury's got suthin' to say to it, hain't they? Cat? Cat's foot, *I* say. Likely story, likely story. Don't believe a word on 't."

Solomon dared to steal a look, and was not reassured to see in the jurymen's faces doubt replacing mirth. Then Hiram Hopkins's hearty voice, ringing with opposition, struck upon his delighted ear. He remembered Hiram's dislike for the cantankerous Keith. Here perhaps was a defender.

"Oh, come, Mr. Keith! Oh, come now!" he heard Hopkins exclaim. "What's the use of raising a rumpus? It wasn't nothing but bird shot. Folks don't go murdering folks with bird shot."

"Don't care if 't was bird shot!" came Abijah's snapping tones. "Don't care if 't was pin-heads; principle's the same."

"It is, it is!" admitted Solomon, in his soul.

"Well," said Hiram, with a common sense in which Mr. Peaslee took comfort, "the practical effect is mighty different. Gentlemen," he added to the jurors, "I can't see that we've got any call to go any further with this. Peaslee was just shooting at a cat. I don't see the sense of taking up the time of the court and makin' expense for any such foolishness. I say we'd better dismiss young Edwards's case, and Peaslee's along with it. It's such fool doings, I think we'd better, if only to keep folks from laughing at the grand jury."

Solomon's heart was in his mouth. Would the others take this view—or Keith's?

"Oily talk, dretful oily talk!" came Abijah's fierce pipe. "Don't take any stock in 't. Shot him, didn't he? Grand juror—what difference does that make? If they ain't fit, weed 'em out—weed 'em out!"

"Fit?" said Hiram. "It took some spunk to get up there and tell just what a fool he'd been, didn't—"

"Humph!" Abijah interrupted, with a snort. "Had to, didn't he? Farnsworth asked him where he was, didn't he? Had to squirm out somehow, didn't he? Got about as much spine as a taller candle with the wick drawn out, accordin' to his own showin'. Better weed him out, better weed him out! Humph!"

Poor Mr. Peaslee sank still lower in his chair; his head fell still lower on his chest. They were taking away from him even the credit of voluntary confession. Why had Farnsworth asked that question? In casting doubt upon his one brave deed fate seemed to him to have done its worst.

"He'd got up before I put the question," said Farnsworth.

He wished to be just. But he was indignant with Peaslee. After his first laughter, his thoughts had dwelt upon the trouble that Solomon had brought upon the innocent Jim, "just to save his own hide, the old—skee-zicks!" he exclaimed to himself.

After all, what did he know about Peaslee? If the man had merely shot at a cat, why under the sun should he not have said so at once, and saved all this bother? The more he thought, the more indignant he grew—and the more doubtful. He did not notice at all the look of timid gratitude which Mr. Peaslee cast in his direction.

"Course he was up before you spoke!" Solomon was further gratified to hear Hopkins declare, in his big, hearty voice. "And I think a man who owns up fair and square just when it's hardest to has got spine enough to hold him together, anyhow."

"Up before ye asked him!" Abijah turned on Farnsworth. "Up for what? Tell me that, will ye?"

And Solomon, listening anxiously for Farnsworth's answer, was depressed to hear him give merely a good-humored laugh at Uncle Abijah's thrust.

"Mr. Peaslee," asked Sampson, so unexpectedly that Solomon jumped, "didn't you say something about a marble?"

"Yes," said Mr. Peaslee, gloomily.

"Fit the bore, did it?" continued the foreman.

"Slick," answered Mr. Peaslee, with the brevity of despair.

"If that marble fitted the bore," said Albion Small, while Sampson nodded assent, "it's my opinion it might do considerable damage."

His opinion had weight, for Small was a hunter of repute. Recovered from their amusement, the grand jurors had become gradually impressed with the idea that Mr. Peaslee's confession still left some awkward questions unanswered. If the matter were so simple as he said, why had he kept silent so long?

The jurymen came from all over the rather large county, and although they all had some knowledge of the principal men of Ellmington, and although such of them as had dealings at its bank had met Mr. Peaslee, none of them knew him well. He was a newcomer at the village, and when at his farm had not had a wide acquaintance.

They looked to Farnsworth as his fellow townsman to speak for him; but Farnsworth said nothing, and seemed preoccupied and doubtful. The inference was that he shared their perplexity. They felt that Keith, for all his "cantankerousness," might be right. Solomon could draw no comfort from their faces.

All this while Paige had been playing with his watch-chain and watching Abijah, whose character he appreciated, with discreet amusement; but he found himself in essential agreement with the peppery old fellow.

"Ask the state's attorney, why don't ye?" put in Keith, impatiently. "He'll tell ye I've got the rights on 't. Ain't afraid, be ye?"

Sampson smiled. "Mr. State's Attorney," he said, turning to Paige, "I guess perhaps you'd better give us the law of this."

"Well, gentlemen," said Paige, "as a matter of law, Mr. Keith would seem to be right," and at the word Solomon's spirits sank to new depths.

"Didn't I tell ye?" said Abijah, triumphantly.

Had the state's attorney said that he was wrong, the old man would have called him a popinjay to his face. Abijah's exclamation was not deference to legal knowledge; it was merely quick seizure of a tactical point.

"Lamoury was shot," Paige went on, with a little smile at Keith's interruption, "and by his own statement, Mr. Peaslee shot him. On his own admission, his gun was dangerously loaded. Although a boy, a neighbor's son, was charged, through his act, with a serious offense against the laws, he made no confession. And when, at last, he did speak, it is at least open to debate whether he did it of his own volition, or because he was forced to do so by the embarrassing question put to him by one of your number. I don't impugn his veracity, but I am bound to remark that he is an interested witness. All this is a question of fact for you to consider.

"I think you should know a little more. To determine if there was any motive, you need to know if there was any bad blood between Mr. Peaslee and Lamoury; to find an indictment to fit the case you need to know how badly Lamoury is hurt. I think you should have Lamoury here. Cross-questioning him, and perhaps Mr. Peaslee,"—Solomon shivered,— "should establish whether the shot was accidental, as the accused says, or intentional, as Lamoury contends. I'll have the complainant here to-morrow, if it's a possible thing. As there's no formal charge—as yet—against Mr. Peaslee, I think you may properly postpone until then the question of entering a complaint or making an arrest, if necessary,"—Solomon shivered again,— "and of his proper holding for appearance before the court. Meanwhile, I suggest that you dispose of the case against young Edwards, and then adjourn. Mr. Peaslee," he added significantly, "will of course be present to-morrow morning."

"Sartain, sartain," answered poor Solomon, tremulously.

It was already late, and when the grand jury had formally dismissed the complaint against Jim, the hour was so advanced that adjournment was taken for the day. When Mr. Peaslee left the court house no one spoke to him, and he walked slowly home, full of the worst forebodings.

Why had he put in that marble? Relieved of his burden of anxiety and remorse in regard to Jim, he began to think more definitely than he had

done heretofore of the possibility of serious harm to Lamoury. It was dreadful to think that he might have badly wounded an inoffensive man. Was Lamoury much hurt? What would happen to a marble in a shotgun, anyhow? Would he be arrested? Would his case get to trial? Could he, without a single witness, prove that it was an accident? The sinister figure of Jake Hibbard rose before him, and made him feel helpless and frightened. The future looked black.



HE TURNED TO FACE THE STORM

"But I done right," he tried to console himself by saying. "I done right."

Better late than never, to be sure; but if genuine comfort in a good deed is sought, it is best to act at once. Mr. Peaslee could feel but small satisfaction in his tardy confession.

Moreover, he must now face his wife. As he turned with reluctant feet into his own yard he fairly shrank in anticipation under the sharp hail of her biting words.

To postpone a little the inevitable, to gather strength somewhat to meet the shock, he passed the kitchen porch and went on toward the barn. Seating himself upon an upturned pail, he stayed there a long while, still as a statue, while he chewed the cud of bitter reflection.

After a while, at the barn door there was a familiar flash of white and yellow. Looking wearily up he saw the great, green eyes of the Calico Cat fastened upon him in fierce distrust. She had one foot uplifted as if she did not know whether it was safe to put it down, and in her mouth, pendent, was a Calico Kitten.

Mr. Peaslee, silent and immovable, watched her with apathetic eyes. Finally, as if assured he was not dangerous, she put down her foot and disappeared with soft and cushioned tread into the dim recesses of the barn. Yet a little while and she again appeared in the doorway with a second duplicate of herself. Again an interval, and she brought a third.

"Well," said Solomon to himself, his spirit quite crushed, "I guess she ain't bringing no more than belong to me by rights."

Nevertheless, he could not endure to see any others. He went desperately into the house, where he found his wife fuming over his delay.

"I guess I may as well tell ye, first as last," he said, in a sort of stubborn despair. "'T was me that shot Lamoury."

"You!" exclaimed his wife, dropping her knife and fork, and looking at him as if she thought he had taken leave of his senses.

"I guess I'm the feller," he averred, with queer, pathetic humor. And turning a patient, rounded back to his wife's expected indignation, he told his story while he nervously washed at the sink, and fumblingly dried his face and hands in the coarse roller towel. He made these operations last as long as his confession. Then, at an end of his resources, he turned to face the storm.

Mrs. Peaslee simply looked at him. She struggled to speak, but she found herself in the predicament of one who has used up all ammunition on the skirmish-line, and comes helpless to the battle. She simply could think of nothing adequate to say.

She stared at her husband while he stared out of the window.

Then she gave it up.

"Draw up your chair!" she said sharply. "I guess ye got to eat, whatever ye be!"



VII

WHEN the grand jury dispersed after Mr. Peaslee's confession, Farnsworth, first speaking a few words to Paige, the state's attorney, hurried toward the Union School. As he expected, he met Miss Ware coming from it on her way to her boarding-house.

He waved his hat, and called:—

"Jim's free!"

As he reached her side he added, "He didn't fire the shot at all."

"Of course he didn't!" cried Nancy, triumphantly. "Didn't I tell you? But who did, and how did you find out?"

"Peaslee," said Farnsworth. "He owned up."

"Mr. Peaslee! Then that awful harmonica—Why, the wretch!"

"Sh!" warned Farnsworth. "Not so loud! These are jury-room secrets which I'm not supposed to tell."

But he told them, nevertheless. As the two walked along together, he gave her an account of all that had happened.

"But what I don't understand," he concluded, "is what made Jim behave so. What did he clean his gun for? Why did he hide the rags and put away the ammunition? He acted just as if he were trying to shield some one. We know he wasn't trying to shield himself, and I don't see why he should shield Peaslee."

"Fred!" said Nancy, stopping and facing him. "Jim knew that his father was the only person in the house, didn't he?"

"Yes," said Farnsworth.

"Then he thought his father did it!"

"O pshaw!" exclaimed Farnsworth. "He couldn't!"

"Don't be rude, Fred!" admonished Nancy. "Wasn't I right before? Well, I'm right now. How could he have thought anything else? I'm going straight to the jail and find out. And can we get him away from that jail?"

"Yes," said Farnsworth. "I spoke to Paige. He said he'd bring the boy in and have him discharged this afternoon. He has to appear before the judge, you know, before he can be let go."

"That's nice," said Nancy. "Now, Fred, you go straight to Mr. Edwards and bring him up there, too. I don't suppose any one's thought to tell him."

"But I haven't had any dinner," objected Farnsworth.

"Dinner!" exclaimed Miss Ware, in deep scorn, and Farnsworth laughed and surrendered.

They separated then. Miss Ware took the side street to the jail, while Farnsworth hurried along toward Edwards's house.

"Mr. Edwards," he said, when that gentleman appeared at the door, "Miss Ware wants you right away at the jail," and as he spoke he was struck with the strain which showed in the man's face. "He must have felt it a good deal," he reflected, with surprise.

A sudden fear showed in Mr. Edwards's eyes.

"Jim isn't sick, is he?" he asked.

"Oh, no!" replied Farnsworth, hastily. "He's cleared, that's all. We'll have him out of jail this afternoon."

"Cleared?" repeated Mr. Edwards, distrustfully. Was Farnsworth joking? Nothing was more certain in the father's mind than that Jim had fired the shot. No other supposition was possible. His face grew severe at the thought that Farnsworth was trifling with him.

"Yes, cleared!" said the young man, somewhat nettled. "We have absolute, certain proof that Jim hadn't anything to do with it."

"I should like to hear it," said Mr. Edwards, coldly.

"Well, we have the real offender's own confession," said Farnsworth, irritated at the incredulity of the man. What was the fellow made of?

Mr. Edwards said nothing. He turned and got his hat, and walked with Farnsworth up the street the half-mile to the jail. His face was impassive, but his movements had a new alertness, and Farnsworth noted that he had to walk painfully fast to keep up with this much older man.

Edwards, in spite of his cold exterior, was a man of strong feeling, and there was, in fact, a deep joy and a deep regret at his heart. He knew with thankfulness that he had a truthful and courageous son. He saw with passionate self-reproach that he had done the boy a great injustice. But why, why had Jim cleaned the gun?

Farnsworth, little guessing the turmoil in the heart of the grave man by his side, was wondering if, after all, Miss Ware could be right in thinking that Jim had sacrificed himself for this unfeeling parent.

"If she is right," he reflected, thinking how harsh had been the father's treatment of the boy, "what a little brick Jim is!"

He had a very human desire to present this view and prick this automaton into some show of life.

"Mr. Edwards," he said suddenly, "Jim knew, didn't he, that you were the only person besides himself at home?"

"I suppose so."

"Does it occur to you that he may have thought you did the shooting?"

"That can't be so," said Mr. Edwards; but there was a note of shocked concern, of dismay, in his tone which satisfied Farnsworth, and again he thought more kindly of his companion.

And Mr. Edwards was stirred by the unexpected question. After all, he thought, since Jim was not trying to shield himself, whom else could he wish to shield? And a sudden deep enthusiasm filled him for this son who was not only courageous and truthful, but who, in spite of his unjust treatment, was loyal, who—he thrilled at the word—loved him! But no, it

was not possible! How could his son have thought that he could accuse his boy of what he had done himself?

And upon this doubt, he found himself with a quickened pulse at the door of the jail. Farnsworth rang the bell. Soon they stood in Mrs. Calkins's sitting-room, facing Jim and Nancy. And then Miss Ware caught Farnsworth by the arm and drew him quickly into the hall, and shut the door behind her.

"I'm certain!" she whispered, breathlessly. "When I told Jim first, he wasn't glad at all, until I managed to let him know his father wasn't arrested. O Fred, that boy's a little trump!"

Meanwhile, in Mrs. Calkins's sitting-room, father and son faced each other, and it would be hard to say which of the two was the more embarrassed.

But certain questions burned on Mr. Edwards's lips.

"Jim," he said, with anxious emotion, "did you think that *I* shot Lamoury?"

"Yes, sir," said Jim.

"But why, my boy, why should I want to shoot him?"

"Lamoury had been telling," said Jim, highly embarrassed.

"Telling?" said his father, in perplexity.

"Yes, sir," said Jim, "you know—about your being a—a smuggler."

Much astonished, Mr. Edwards pushed his questions, and soon came to know the depth and breadth of his boy's misconception.

"Then," he said finally, "when I accused you of having fired the shot, you thought I had to do so to avoid an arrest which would be serious for me. Is that it?"

"Yes, sir."

Mr. Edwards could not speak for a moment for emotion. Then he drew the boy to him.

"My son, my son," he said, "you and I must know each other better."

And by the same token, Jim realized that his father was proud of him and loved him. It was new and sweet. He felt a little foolish, but very happy.

"Jim," his father said huskily, "would you like a new breech-loader?"

And then Jim was happier still.

Those were reluctant feet which dragged Mr. Peaslee the next morning to the jury-room. The counsel of the night had brought no comfort, and when he came among his fellows their constraint and silence were far from reassuring. Nor, when the sitting had begun, did he like the enigmatic smile with which the well-dressed Paige stood and swung his watch-chain. How he distrusted and feared this smug, self-complacent young man! Yet the state's attorney's first words brought him unexpected comfort.

"Mr. Lamoury," he said, still with that puzzling smile, "has consented, in spite of his serious physical condition, to appear before you."

Lamoury could not be so badly hurt if he could come to the court house! But what was this? While the state's attorney held wide the door, Jake Hibbard solemnly pushed into the room a great wheeled chair, in which sat the small, wiry, furtive-eyed Lamoury.

Mr. Peaslee's heart sank as he saw the wheeled chair, and noted the great bandages about the Frenchman's head and arm. He listened apprehensively to the loud complaint of cruelty to his client which Hibbard continued to make, until Paige, pulling the chair into the room, blandly shut the door in his face. Mr. Peaslee heaved a great sigh of mingled contrition and fear. This wreck was his work; he would be punished for it.

"Mr. Lamoury," Paige began courteously, "we so wished to get your version of this painful affair that, though we are sorry to cause you any discomfort, we have felt obliged to bring you here. Will you kindly tell the gentlemen of the grand jury what happened?"

"Yes, seh, me, Ah'll tol' heem!" said Lamoury, eagerly.

Confident that no one knew anything about what had happened except Jim Edwards and himself, he intended to make his narrative striking.

"Yes, seh, Ah'll tol' de trut'. Well, seh, Ah'll be goin' t'rough M'sieu' Edwards's horchard—walkin' t'rough same as any mans. Den I look, han' I see dat leetly boy in de windy, a-shoutin' and a-cussin' lak he gone crazee in hees head. Ah tol' you Ah feel bad for hear dat leetly boy cussin'. Dat was too shame."

And Lamoury paused to let this beautiful sentiment impress itself upon the jurors. Mr. Peaslee listened with profound astonishment.

"Den he holler somet'ing Ah ain't hear, honly 'Canuck,' han' Ah begins for get my mads up. Ah hain't do heem no harm, *hein*? Den he fire hees gun, —poom!—an' more as twenty—prob'ly ten shot-buck heet me on the head of it!"

Buckshot! "Them's the marble," thought Mr. Peaslee, "but there wasn't but one!"

"Ah tol' you dey steeng lak bumbletybees. Ah t'ink me, dat weeked leetly boy goin' for shoot more as once prob'ly—mebbe two, t'ree tam. Ah drop queek in de grass, an' Ah run—run queek! An' when Ah get home, Ah find two, t'ree, five, mebbe four hole in mah arm more beeg as mah t'umb."

Pete stopped dramatically; his little sparkling black eyes traveled quickly from one face to another to note the effect he had made. Mr. Peaslee's spirits were rising; the grand jury could not believe such a "passel of lies"—only, only was one of those holes "beeg as mah t'umb" made, perchance, by a marble?

"That's a mighty moving narrative," commented Sampson, dryly. "Did I understand you to say that you were hit in the head or the arm?"

"Bose of it," averred Pete, without winking.

"I didn't shoot any bag of marbles," whispered Mr. Peaslee to his neighbor, who nodded. That he had the courage to address a remark to any one shows how his spirits were rising.

"You said you were going along the short cut through Mr. Edwards's orchard, didn't you?" the state's attorney now asked.

"Yes, seh," said Pete.

Paige stepped to a big blackboard, which he had had set up at the end of the room, and rapidly sketched a plan of the Edwards' lot, with the aid of a memorandum of measurements which he had secured. A line across the upper left-hand corner represented the path commonly used by the neighbors in going through the Edwards's orchard.

"Now, Mr. Lamoury," resumed Paige, "I don't quite understand how, if you were on the path there, you could have seen young Edwards, or he you. The barn seems to be in the way until just at the right-hand end, and when you get to that, you'd have to look through about ten rows of apple-trees. Now weren't you a little off the line?"

"Dame!" exclaimed Pete, ingenuously. "Ah'll was got for be, since Ah was shoot, ain't it? Ah'll can't remembler."

"Mr. Edwards told us," continued Paige, while Solomon's heart warmed to him, "that he saw you fall out of some bushes. Now these are the only bushes there are," and he rapidly indicated on the board the rows of currant bushes, the asparagus, the sunflowers, and the lilacs which lined the garden on its right-hand corner. "That's a good way from the path."

"Ah'll be there, me!" cried Pete, in indignant alarm. "No, seh! M'sieu' Edwards say dat? Respectable mans lak M'sieu' Edwards! It was shame for lie so. No, seh! Ah go home t'rough de horchard. Mebbe Ah'll go leetly ways off de path of it,—mebbe for peek up apple off'n de groun' what no one ain't want for rot of it,—Ah'll don't remembler. But I ain't go for hide in de bush! Ah'll be honest mans, me. Ah'll go for walk where all mans can see, ain't it? What Ah'll go hide for, me?"

Paige drew a square on Mr. Peaslee's side of the fence, directly opposite the bushes.

"That," said he, "is Mr. Peaslee's hen-house," and he brushed the chalk from his fingers with an air of indifference.

"So-o?" cried Pete, with an air of pleased surprise. "M'sieu' Peaslee he'll got hen-rouse? First tam Ah'll was heard of it, me. Fine t'ing for have hen-rouse, fine t'ing for M'sieu' Peaslee. Ah'll t'ink heem for be lucky, M'sieu' Peaslee. But Ah'll ain't know it. Ah'll ain't see nossin' of it, no, seh!" and Pete smiled innocently round at the enigmatic faces of the jurymen.

"Mr. Lamoury," said Paige, with a very casual air, "behind those bushes is a broken board."

"So-o?" said Pete.

"Any one who was there had an excellent chance to study the fastenings of Mr. Peaslee's hen-house door."

"*Mais*, Ah'll was tol' you Ah'll not be dere, me!" cried Pete, alarmed and excited.

"That," said Mr. Paige, calmly, "is the only place where you could be and get shot from the boy's window. Either you were there or you weren't shot. Besides, Mr. Edwards found your foot-prints."

Pete shrunk his head into his shoulders and glared questioningly at the state's attorney. The examination was not going to his liking.

"What Ah'll care for dat?" he said at last.

"Oh, nothing," said Paige, "nothing at all. Let us talk of something else. Let me ask why Mr. Edwards discharged you from his employ last spring?"

"Nossing! Nossing! Ah'll be work for heem more good as never was."

"If he treated you as unjustly as that," said Paige, with sympathy, "you cannot have a very high opinion of Mr. Edwards."

"Ah'll tol' you he was bad mans. He'll discharge me more as seexty mile off. Ah'll have for walk, me. Ah'll tol' you dat was mean treek for play on poor mans."

And Pete sought sympathy from the faces about him.

"That was too bad, certainly," said Paige. "Now about those wounds of yours. I have Doctor Brigham here, ready to make an examination. I'll call him now," and the state's attorney started toward the door of the witness-room.

Pete jumped.

"*Hein!*" he exclaimed.

"You don't object to having an excellent doctor like Doctor Brigham look at your wounds, do you?" asked Paige.

Now Lamoury had no wounds to show. The smiling, well-dressed Paige, standing there and looking at him with amused comprehension, was more than he could bear. Pete suddenly lost his temper, never too secure. Out of his wheeled chair he jumped, and shaking his fist in Paige's face, he shouted:—

"T'ink you be smart, very smart mans! Well, Ah'll tol' you you ain't. Ah'll tol' you you be a great beeg peeg! Ah'll tol' you dat Edwards boy, he shoot at me. I see heem. 'T ain't my fault of it if he not hit me, *hein*? You be peeg! You be all peegs—every one!" and Pete, making a wide, inclusive gesture, shouted, "I care not more as one cent for de whole keet and caboodle of it! Peeg, peeg, peeg!"

And turning on his heel, the wrathful Frenchman left the room. He left also a convulsed jury and a wheeled chair, for the hire of which Hibbard found himself later obliged to pay.

Mr. Peaslee, the thermometer of whose spirits had been rising steadily, joined in the laughter which followed the exit of the discomfited Pete.

"Terrible smart feller, Paige, ain't he?" said he to Albion Small. "Did him up real slick, didn't he?" The delighted Solomon had quite forgotten his dislike for the citified Paige.

Of course the grand jury promptly abandoned the inquiry. The fact was now obvious that the vengeful Lamoury, aided by the unscrupulous Hibbard, had merely hoped to be bought off by Mr. Edwards, and had been disappointed.

"The case," said Paige, "would never have come to trial. If Edwards had persisted, and let his boy go to court, they'd have had to stop. They must have been a good deal disappointed when he refused bail; they probably thought he'd never let the boy pass a night in Hotel Calkins."

Mr. Peaslee walked home sobered but relieved. The loss of public esteem which had come to him through his foolish adventure, the serious wrong which he had inflicted upon Jim Edwards, the disgust of his wife were all things to chasten a man's spirit; but on the other hand, Jim was now out of jail, Lamoury had not been hurt in the least, and he himself had not been complained of or arrested. If he should have to endure some chaffing from Jim Bartlett and Si Spooner, his cronies at the bank, he "guessed he could stand it." On the whole, he was moderately happy.

The sun was low in the west, and the trees were casting long shadows across his yard, brightly spattered with the red and yellow of autumnal leaves. His house, white and neat and comfortable, seemed basking like some still, somnolent animal in the warm sunshine.

Solomon turned, and cast his eye down the road and over the Random River, flowing smooth and peaceful through its great ox-bow. He recognized Dannie Snow, scuffling through the dust with his bare feet, as he drove home his father's great, placid, full-uddered cow. The comfort of the scene, the cosy pleasantness of the place among the close-coming hills, struck him, in his relieved mood, as it had never done before. Even though disappointed in political ambition, a man might live there in some content.

After all, he had thirty thousand dollars, and it had been calmly drawing interest through all his tribulations.

Consoled by this reflection, he walked to the rear of his house and began pottering about the chicken yard. Then in the Edwards garden appeared Jim. Solomon gave a slight start, and took a hesitating step or two, as if minded to flee, but restrained by shame. He watched the boy come to the fence, and climb upon it. He said nothing; he could not think of anything to say.

"That harmonica was fine!" said Jim, grinning amiably.

Mr. Peaslee was immensely relieved. If there was a momentary twinge at the thought of the money it had cost him, it was quickly gone.

"Glad ye enjoyed it. Seem 's though I wanted to give ye a little suthin'—considerin'. I hope you and your father ain't ones to lay it up agin me."

"That's all right," said Jim, grandly. "I had a bully time at the jail. Mrs. Calkins is a splendid woman. You just ought to eat one of her doughnuts!"

"Didn't know they fed ye up much to the jail," commented Solomon, puzzled.

"Oh, I wasn't locked up," said Jim, and explained.

"Well, well, I'm beat! That was clever on 'em, wa'n't it now?" said Mr. Peaslee, much pleased.

"And father ain't holding any grudge, either," said Jim. "He says he's much obliged to you"—a remark which the reader will understand better than Mr. Peaslee ever did.

"You listen when you're eating your supper!" cried Jim, as he climbed down from the fence and ran toward the house. "I'm going to play on that harmonica!"

And Solomon rejoiced. Poor man, he did not know how the popularity of his gift was destined to endure; he did not know that he had let loose upon the circumambient air sounds worse than any ever emitted by the Calico Cat.

Filled with the pleasant sense of having "made it up" with the boy whom he thought he had so greatly injured, Solomon started along the path toward the kitchen door. He began to realize that he had an appetite—something now long unfamiliar to him. As he drew near, an appetizing odor smote his nostrils.

"Eyesters, I swanny!" he ejaculated.

It was unheard of! There was nothing which Solomon, who had a keen relish for good things to eat, and would even have been extravagant in this one particular had his firm-willed wife permitted, enjoyed more than an oyster stew, or which he had a chance to taste less often. Oysters could be had in town for sixty cents a quart, a sum that seems not large; but in Mrs. Peaslee's mind they were associated with the elegance and luxury of church "sociables," and with the dissipation of supper after country dances. They were extravagant food. Solomon could not believe his nose.

He entered the door, and there upon the table stood the big tureen, with two soup plates at Mrs. Peaslee's place. There was nothing else but the stew, of course, but it lent a gala air to the whole kitchen.

"Why, Sarepty, Sarepty!" he said to his wife.

"You goin' to be arrested?" asked Mrs. Peaslee, sharply. She wanted no sentiment over her unwonted generosity; but, truth to tell, when she had seen Solomon depart that morning, and realized that he might be going to arrest, possibly to trial, perhaps to conviction and to jail, she had felt a sudden fright, a sudden sympathy for her husband, and she had bought half a pint of oysters for a stew—in spite of expense.

"No, I ain't going to be arrested," said Solomon, with satisfaction. "The grand jury found there wa'n't anythin' to it; but—but, Sarepty—"

He paused helplessly, unable to express his complex feelings about the stew, and the attitude on the part of his wife which it revealed.

"Oh, well," said his wife, "after all, 't ain't 's if you'd gone and lost money."

And after supper Mr. Peaslee carefully poured some skimmed milk into a saucer and went out to the barn.

"Kitty, kitty!" he called. "Kitty, come, kitty!"

The Calico Cat did not respond. But in the morning the saucer was empty.

Transcriber's Note

The cover illustration referred to in the Author's Note at the beginning of this book was not available for this electronic version of the text.

*** END OF THE PROJECT GUTENBERG EBOOK THE CALICO CAT

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